

Licensing Act 2003

Statement of Licensing Policy 2026 – 2031

London Borough of Southwark

January 2026

(adopted by Council Assembly March 2026)

CONTENTS

LEGAL BACKGROUND TO THIS DOCUMENT	5
FOREWORD BY LICENSING CHAIR	5
Chapter 1 - ALL ABOUT SOUTHWARK	7
Borough Map	8
Our Borough	8
Leading Southwark	8
Chapter 2 – GENERAL INFORMATION	10
Southwark and the leisure and entertainment industry	11
London Ambulance Service (LAS) Callouts and Hospital Presentations to A&E for Violence (<i>Data source: SafeStats</i>)	12
Key Observations:	12
Crime and Disorder in Southwark: Total Notifiable Offences (TNOs)	12
Key Findings – Cumulative Impact Areas (CIAs)	13
Chapter 3 - PURPOSE AND SCOPE OF THE LICENSING POLICY	14
Purpose of the policy	14
Scope of the policy	14
Types of authorisation	14
Definitions: ‘Regulated Entertainment’ includes:	14
Definition - Late Night Refreshment	15
Definition - Nightclub	15
The Licensing Objectives	15
Fundamental principles	16
Provision of scale plans	17
Variations and New applications	17
Provisional statements	17
Temporary Events Notices	17
Multiple TENs for a single event	18
Major art and pop festivals, carnivals, fairs and circuses	19
Consultation Arrangements	19
Personal Licence Applications	20
Responsible Authorities	20
Representations	21
Disclosure of personal details of persons making representations	21
Chapter 4 – SCHEDULE OF DELEGATIONS FOR DECISIONS	22
Determination of applications	22
Licence reviews	23
Applications for transfer of a premises licence following application for a review	24
Annual fee payments	24
Other regimes	24

Chapter 5 - DETERMINING APPLICATIONS FOR PREMISES LICENCES AND CLUB PREMISES CERTIFICATES ..	26
Location and other relevant considerations	27
High standards of management	27
Mandatory conditions	28
Other conditions.....	28
Shadow licences	28
Chapter 6 - CUMULATIVE IMPACT AREAS (CIAs).....	29
Early morning restriction orders (EMRO).....	29
Late Night Levy	29
Exemptions from the levy	30
Reduction	30
Chapter 7 – HOURS OF OPERATION.....	31
Licensing hours	31
Table 2 = Recommended Licensable Hours	32
Chapter 8 – LICENSING OBJECTIVES.....	35
THE PREVENTION OF CRIME AND DISORDER.....	35
Door Supervision	35
The sale and possession of smuggled, bootlegged or counterfeit products	36
Theft of personal property	36
Adult Entertainment	36
PUBLIC SAFETY.....	37
PREVENTION OF PUBLIC NUISANCE	38
Outdoor events/other large events	39
THE PROTECTION OF CHILDREN FROM HARM.....	41
Access to premises by children.....	41
Age Verification Polices	42
Underage Sales/The Purchase and consumption of alcohol by children and young persons.....	42
Film Classification	43
Regulated entertainment provided for children.....	44
Child Sexual Exploitation (CSE).....	45
London Safeguarding Children’s Board	45
Child sexual exploitation and communities	45
Southwark Safeguarding Children’s Board.....	46
Entertainment involving striptease and nudity.....	46
Chapter 9 – ENFORCEMENT	47
Enforcement	47
Partnership Working.....	47
Southwark Licensing Team.....	49
APPENDIX A – CONTACT DETAILS	49
APPENDIX B – MAP OF AREA CLASSIFICATIONS AND CIAs	51
Cumulative Impact	52

Southwark regeneration and planning policies	53
Southwark Cumulative Impact Areas (CIAs)	53
Map of Borough and Bankside CIA	54
Borough and Bankside CIA.....	55
Map of Camberwell CIA.....	55
Camberwell CIA	55
Map of Peckham CIA	56
Peckham CIA	56
Review of CIAs	56
APPENDIX C - OTHER RELATED LEGISLATION AND STRATEGIES	58
Vulnerability and Vulnerable Persons.....	58
Women's Safety Charter	58
Safe Havens	59
Other relevant legislative requirements.....	59

LEGAL BACKGROUND TO THIS DOCUMENT

The Licensing Act 2003 came into effect on 24 November 2005.

It replaced previous legislation on alcohol, entertainment, and late-night refreshment, introducing a new licensing system overseen by local Licensing Authorities.

Under Section 5 of the Act, each Licensing Authority must prepare and publish a statement of licensing policy every five years. Southwark's first Statement of Licensing Policy was formally approved on 8 December 2004. Since then, it has been reviewed, revised, and updated in line with the Act's requirements to reflect changes in law, national guidance, and local policy. Each revision has been shaped through public consultation, with full consideration given to the Act itself, its regulations, and the Section 182 guidance issued by the Home Office.

It should be noted that a Licensing Authority may depart from its policy if the specific circumstances of a case justify such a decision, in the interests of promoting the Licensing Objectives.

FOREWORD BY THE LICENSING CHAIR

The London Borough of Southwark comprises a broad and diverse array of licensed premises and venues. Approximately 1,500 establishments are currently licensed for the sale or supply of alcohol, the provision of regulated entertainment, and/or the provision of late-night refreshment. These include, but are not limited to, public houses, bars, nightclubs, members' clubs, theatres, cinemas, indoor sporting facilities, restaurants, cafés, takeaways, off-licences, supermarkets, and grocery stores. Collectively, these establishments contribute significantly to the Borough's vibrancy by offering a wide range of leisure and cultural opportunities, supporting tourism, generating employment, and making a substantial contribution to the local economy. Many of these establishments employ young, local residents, nationally over half of the pub workforce is under 25 and 620,000 young adults work in hospitality and leisure. This Authority fully acknowledges the importance of the leisure and entertainment sector in enhancing the social and economic fabric of the Borough.

This Authority is of the view that, where licensed premises are operated responsibly—with a clear commitment to upholding the licensing objectives, maintaining safe and well-managed environments, and engaging constructively with the Council, its partners, and the local community, they can serve as positive forces for community cohesion and cultural development. It is also recognised that alcohol plays an inherent role within the leisure and entertainment industry.

Nevertheless, this Authority is equally aware of the potential adverse impacts arising from poor management practices. These may include antisocial behaviour, public nuisance, disruption to residents, and more serious incidents of crime and disorder. Alcohol misuse, in particular, is a significant contributing factor in such issues. Alcohol-related violence, disorder, and public rowdiness place considerable pressure on local services, including accident and emergency departments, policing, street cleansing, and the criminal justice system. This Authority does not consider it acceptable for the residents of Southwark to bear the consequences of irresponsible business operations.

Accordingly, this policy seeks to strike an appropriate balance: enabling responsible operators to thrive and contribute to a dynamic and diverse local economy, while ensuring that the quality of life for those who live and work in the Borough is preserved and enhanced. This Authority firmly believes that these aims are achievable through active and ongoing collaboration among all relevant stakeholders.

Southwark's Responsible Authorities have a best practice set of recommended conditions, and it is strongly suggested that these are viewed by all applicants ([click link here](#)).

Southwark expects applicants to be mindful that the Council has declared a Climate Emergency. In this context, applicants should be cognisant that this local authority expects that, where possible, environmentally responsible operational practices are implemented by licensed premises. —These include avoiding the use of patio heaters, eliminating single-use plastics where possible (for example, opting for reusable polycarbonate drinkware and non-plastic takeaway containers), and encouraging customers to use active travel/public transport to their premises. All measures should align with current government guidance.

The introductory sections of this policy set out the context of the Borough and the role of the Council, while also outlining how this Authority discharges its statutory licensing responsibilities and manages associated administrative processes.

Our Borough

1. History

Southwark is one of London's oldest areas, with a rich history that stretches back to Roman times. The early development of Southwark was due to its position at the southern end of London Bridge, which for centuries was the sole bridge linking north and south London. Southwark was originally part of Surrey.

In Victorian times, the area was divided into the Parishes of Bermondsey, Camberwell, Newington, and Southwark, St George the Martyr with remaining parishes being within St Olave and St Saviour's district. In 1900, these were reorganised into the Metropolitan Boroughs of Bermondsey, Camberwell and Southwark. In 1965, with the merger of the three Boroughs under the London Government Act 1963, the current boundaries of Southwark were established.

2. Geography Demographics of Southwark (*Office for National Statistics, 2021*)

- a. **Population:** Between the 2011 and 2021 censuses, Southwark's population grew by 6.7%, from approximately 288,300 to 307,600.
- b. **Households:**
 - I. Households with couples and no children rose from 14.3% to 16.3%.
 - II. Households with couples and dependent children fell from 13.6% to 12.7%.
 - III. Households with couples and only non-dependent children rose from 2.9% to 3.3%.
- c. **Languages:** English is the main language for 89% of residents, with Spanish also widely spoken (by 20%). Around 10,000 residents who do not speak English as a main language reported speaking it poorly.
- d. **Ethnicity:**
 - I. 51% identify as having a White ethnic background.
 - II. 25% identify as Black British, Caribbean, or African.
 - III. 10% identify as Asian or Asian British.
- e. **Employment:**
 - I. The employment rate increased from 59.6% in 2011 to 62.7% in 2021.
 - II. The proportion of residents aged 16 and over who are retired fell from 9.4% to 8.6%.

3. Regeneration and Growth

While Southwark continues to address the complex social, health, and economic challenges typical of an inner-city area, levels of deprivation have decreased in recent years. This Borough is becoming one of London's most dynamic areas, with a 20-year regeneration programme underway. This initiative aims to deliver up to 20,000 new homes and 10,000 new jobs.

4. Southwark is committed to supporting existing businesses and industries, while also creating opportunities for new commercial development. Major regeneration projects are taking place in areas including the Aylesbury Estate, Borough, Bankside and London Bridge, Canada Water, Elephant and Castle, Old Kent Road and Peckham.

[The 2021 Census overview | Southwark Council](#)

Leading Southwark

5. Council Governance

The London Borough of Southwark is divided into 23 wards (as seen on the map), represented by 63 elected councillors. These councillors form the Council Assembly, the

sovereign body of the Council, chaired by the Mayor of Southwark. Council Assembly is responsible for adopting and amending the Council's constitution, approving the policy framework and annual budget, electing the Mayor and Council Leader, and reviewing motions and making decisions on agenda items.

6. Cabinet Structure

The Cabinet is led by the Council Leader and Deputy Leader. It consists of a total of ten members in total, each holding an individual portfolio.

7. Cabinet Responsibilities

The Cabinet leads the community planning and consultation process, drafts the Council's budget and policy framework, and is responsible for most decisions relating to resources and priorities.

8. Scrutiny Committees

Scrutiny Committees oversee Council decisions and ensure transparency and accountability. They examine Council services, budgets, and policies, and have the power to 'call in' decisions made by the Cabinet, recommending changes or further consideration where necessary.

9. Licensing Authority Responsibilities

As the designated Licensing Authority, Southwark Council must carry out its licensing functions with a view to promoting the four statutory licensing objectives. To achieve this effectively, a council must establish a Licensing Committee composed of at least 10, but no more than 15, elected members. Southwark has a cross-party committee of 15 members.

10. Licensing Sub-Committees and Delegated Authority

Decisions on Licensing applications may be made by Delegated Authority. Where applications are referred to be considered by committee, a sub-committee consisting of three members from the main committee is established to determine the following applications or reviews:

- Premises licences
- Provisional statements
- Club premises certificates
- Temporary event notices
- Personal licences for the sale or supply of alcohol
- Licensing Sub-Committees are not politically based and have a quasi-judicial function.

[Southwark 2030 delivery plan](#)

Chapter 2 – GENERAL INFORMATION

11. Licensing and regulatory services play an important role in making Southwark safer and ensuring that all residents can enjoy their local neighbourhoods. This Authority recognises that licensing law is not the primary tool for addressing nuisance or anti-social behaviour once individuals are beyond the control of the licence holder—whether a business, club, or individual. However, licensing remains a vital element in managing such issues and forms part of a wider, coordinated approach to regulating the evening and night-time economy in local, town and city centres.
12. Other Mechanisms to Address Behaviour Away from Licensed Premises
The following mechanisms are available to address unruly behaviour that may occur beyond licensed premises:
 - **Use of intelligence:** Maximising the use of intelligence sources, ensuring information is identified, analysed, and shared among all relevant partner agencies.
 - **Partnership resources:** Coordinating resources efficiently and targeting them intelligently where they are most needed to achieve maximum benefit.
 - **Regulatory powers:** Making full and effective use of the powers available to partner agencies beyond licensing, including those under Police, Anti-Social Behaviour, Trading Standards, and Environmental Health legislation.
 - **Support for operators:** Providing good communication, liaison, and training opportunities for responsible operators. Examples include:
 - The Police and Council's Night-Time Economy Team, which provides visible policing, fosters strong working relationships with venue operators and front-of-house staff, and offers reassurance within the night-time economy.
 - "Conflict resolution training" provided by the Council's Health and Safety Team, designed for retail staff to manage workplace violence and aggression.
 - **Planning controls:** Coordinating with Planning to ensure applicants secure planning permission as well as a licence. In cases where planning permission sets a terminal hour for commercial use, applicants must observe the earlier closing time if these differ from Licensing hours.
 - **Infrastructure:** Supporting infrastructure improvements such as CCTV coverage across the Borough, enhanced street lighting, late-night public conveniences, street cleaning, and litter patrols.
 - **Campaigns:** Working with partners (such as the Drugs and Alcohol Action Team under Community Safety and the Safer Southwark Partnership) to deliver initiatives like "Safe World Cup," "Safety Glasses," and "Talking Signs."
 - **Business partnerships:** Developing schemes that benefit local communities, including Business Improvement Districts (BIDs), Better Bankside, Blue Bermondsey BID, South Bank BID, Team London Bridge, and We Are Waterloo.
 - **Cumulative Impact Areas:** Designating specific areas where special rules apply to

prevent communities being disadvantaged by over-concentration of one type of entertainment. Details and maps are provided in Appendix B.

- **Pubwatch and similar schemes:** Supporting the establishment of pubwatch schemes. Further information is available at www.nationalpubwatch.org.uk.
 - **Social responsibility:** Encouraging socially responsible licensed operations through schemes such as the Southwark Women's Safety Charter, Ask for Angela, and Ask for Clive.
13. The Council will use its full range of powers, engage all relevant responsibilities, and work with partners to achieve the licensing objectives.
 14. This policy does not outline the specific circumstances under which authorisations may be required, nor does it explain the licensing processes in detail. Applicants must consult the Licensing Act 2003 and the latest Statutory Guidance before contacting the Licensing Authority.
 15. There is a link to the government guidance accompanying the application forms on the Council's licensing web pages: [Alcohol, late night and entertainment licensing | Southwark Council](#)
 16. Applications will progress in accordance with procedures laid down by the Licensing Act 2003, secondary legislation, and any accompanying applicable guidance under Section 182 of the Act as produced by the Home Office. Prospective applicants should refer to the separate relevant guidance documents for further details. [Revised guidance issued under section 182 of the Licensing Act 2003 \(November 2025\) \(accessible version\) - GOV.UK](#)

Southwark and the leisure and entertainment industry

17. Southwark offers a wide-range of leisure and cultural opportunities. The north of the Borough is recognised as one of London's fastest growing tourist quarters and a thriving business hub. The area encompasses some of London's top attractions (including Shakespeare's Globe Theatre, the Tate Modern, and the Ministry of Sound).
18. Elsewhere across the Borough, there are many other creative hotspots in areas such as Elephant and Castle and Peckham and a very broad variety of leisure and cultural opportunities to serve the varied needs of our diverse communities. These include clubs and bars, restaurants and cafes, galleries, theatres and cinemas.
19. Southwark currently has over 1600 premises licensed for the sale and supply of alcohol and/or regulated entertainment and late night refreshment. Of these, more than 1000 are licensed for the sale and supply of alcohol. Between 90% to 100% of licensed premises operate between 11:00 and 23:00. Additionally, many hundreds of small, occasional and community-focused events are staged across the Borough each year under Temporary Event Notices.
20. At the local level, alcohol-related harm in Southwark has a significant impact, particularly in terms of ambulance callouts and crime. However, this impact is not evenly distributed across the Borough. Local data shows that alcohol-related incidents tend to increase as the day progresses, peaking in the late evening and early morning hours—especially at weekends.
21. Southwark Council Community Partnership from 2023-2024 provides ambulance and

hospital data together with crime and anti-social behaviour (ASB) data summarised below.¹

London Ambulance Service (LAS) Callouts and Hospital Presentations to A&E for Violence (Data source: SafeStats)

Hospital presentation data is currently only available up to September 2023 and does not cover the full 2023/24 financial year. Ambulance data is based on the first callout to an incident to avoid double-counting.

Key Observations:

- Although violence-related offences in the Borough increased by 8.5%, this has not been reflected in London Ambulance Service (LAS) callouts, which have decreased by 7% since 2021/22.
 - The largest reductions were in South Bermondsey (-15 callouts) and Goose Green (-14 callouts).
- The highest volumes of LAS callouts in 2023/24 were recorded in:
 - London Bridge & West Bermondsey (9.8%)
 - North Walworth (8.7%)
 - Borough and Bankside (8%)Combined, these three areas accounted for 26.5% of all callouts.
- Knife injury-related callouts rose by 21.3%, a much higher increase than the 2.2% rise in recorded knife offences.
 - Trend data indicates that LAS callouts peak in summer months, aligning with a seasonal increase in weapon-related violence across the Borough.
- Hospital presentations for both general violence and knife injuries have decreased significantly, which may be due to data quality or recording issues.
 - A significant spike in presentations in February 2021/22 does not align with patterns observed in LAS callouts or knife offence data.

Crime and Disorder in Southwark: Total Notifiable Offences (TNOs)

- Since 2021/22, total notifiable offences (TNOs) in Southwark have risen by 18.2%, compared with a 12.2% increase across London.
 - In 2023/24, Southwark ranked 4th highest in London and 2nd highest among its Statistical Neighbour Group for TNOs.
- Across all reporting years, Southwark has consistently reported a higher offence rate per 1,000 population than the London average.
- As an inner London borough, Southwark includes high-footfall areas which naturally present greater opportunity for offences.
 - Key hotspot locations include London Bridge, Elephant and Castle, and Peckham Rye Stations.
- Peak periods for offending remain consistent across the years:
 - Higher volumes are reported between April and September, possibly due to longer daylight hours.

¹ [CSP Strategic Assessment 2324](#)

- Fridays and Saturdays see the highest levels of offending.
- Peak times are 12am–1am and 3pm–7pm.
- Note: The 12am–1am peak may be skewed by the Metropolitan Police Service's (MPS) default data entry, where this time is recorded when the exact time is unknown or the offence occurred over several days.

Source: [*CSP Strategic Assessment 2324*](#)

Key Findings – Cumulative Impact Areas (CIAs)

22. Within established CIAs:
 - Proportional changes in alcohol-related violence between 2018/19 and 2022/23 are not statistically significant.
 - Reported increases in alcohol-related LAS callouts are due to a methodological change, not actual incident volume.
 - Rowdy behaviour and street drinking in CIAs are at their lowest levels since the CIAs were first introduced.

Chapter 3 - PURPOSE AND SCOPE OF THE LICENSING POLICY

Purpose of the policy

23. This policy has five main objectives:

- To reinforce, for the benefit of elected members on the Licensing Committee, the powers and constraints placed upon the Local Authority as Licensing Authority by the 2003 Act;
- To set out, for the benefit of prospective Applicants, Responsible Authorities, local residents, and licensed operators, the parameters under which this Authority will make its licensing decisions;
- To inform prospective licensees how a licensed premises is likely to be able to operate within an area;
- To inform local residents and licensed operators how their needs will be addressed;
- To minimise the number of licensing decisions that may be challenged in a court of law.

Scope of the policy

24. The Licensing Act 2003 regulates the following activities:

- The sale by retail of alcohol.
- The supply of alcohol by or on behalf of a club to, or to the order of, a member of the club.
- The provision of regulated entertainment.
- The provision of late night refreshment.

Types of authorisation

25. The Act provides for four different types of authorisations or permissions as follows:

- Personal licences – to sell or authorise the sale of alcohol from premises in respect of which there is a premises licence.
- Premises licences – to use a premises for licensable activities.
- Club premises certificates – to allow a qualifying club to engage in qualifying club activities.
- Temporary Event Notices (TENs) - to carry out licensable activities at a temporary event.

26. The scope of this policy covers new applications for licences, and club premises certificates, transfers, variations, time-limited premises licences and TENs. It also covers the review and possible revocation of licences and certificates.

27. In general, a reference in this policy to a premises licence will also include a club premises certificate.

Definitions: 'Regulated Entertainment' includes:

- ☐ A performance of a play;
- ☐ An exhibition of a film;
- ☐ An indoor sporting event;

- ☐ A boxing or wrestling entertainment;
 - ☐ A performance of live music;
 - ☐ Any playing of recorded music;
 - ☐ A performance of dance;
 - ☐ Entertainment of a similar description to a performance of live music and playing of recorded music or a performance of dance. For the entertainment to be licensable, one or more of these activities must take place in the presence of an audience and be provided (at least in part) to entertain that audience upon premises made available for the purpose.
28. There are a number of exemptions contained in the Act. Schedule 1, Part 2 of the Licensing Act 2003 deals with the provision of regulated entertainment and its exemptions. It outlines which types of entertainment require a licence and which are exempt from licensing. Please refer to <https://www.legislation.gov.uk/ukpga/2003/17/schedule/1>
29. Also, since the introduction of the Live Music Act 2012, a number of deregulatory steps have been taken. For the current up-to-date position, please contact the licensing service (contact details are in Appendix A of this policy).

Definition - Late Night Refreshment

30. Late night refreshment is defined as the supply of hot food or hot drink to members of the public from or in a premise for consumption on or off the premises, between the hours of 23:00 and 05:00. Premises include vehicles and stalls.

Definition - Nightclub

Southwark considers a nightclub to be purpose-built premises with the requisite planning permission in place. A premises that is open from the evening until early morning, usually for drinking, dancing and other entertainment. Whilst there is no legal definition, such premises usually consist of a bar, a dance floor, laser lighting displays, and a stage for live music or a disc jockey (DJ) and are the primary reasons for public attendance.

The Licensing Objectives

31. In carrying out its licensing functions, the Council will promote the four licensing objectives set out in the Licensing Act 2003. They are:
- The prevention of crime and disorder;
 - Public safety;
 - The prevention of public nuisance;
 - The protection of children from harm.
32. Each objective is of equal importance, and the promotion of the four objectives is paramount at all times. It is the responsibility of all parties involved in the licensing process to always work together toward these licensing objectives. The four objectives are considered in more detail in Chapter 8 of this document.
33. The legislation supports many other key aims and purposes. These are vitally important and should be the principal aims for everyone involved in licensing work. They include:

- Protecting the public and local residents from crime, anti-social behaviour and noise nuisance caused by irresponsible licensed operators;
 - Giving the Police and Local Authorities the powers they need to effectively manage and police the night-time economy and take action against those premises that are causing problems;
 - Recognising the important role which pubs and other licensed premises play in our local communities by minimising the regulatory burden on businesses, encouraging innovation and supporting responsible premises;
 - Providing a regulatory framework for alcohol which reflects the needs of local communities and empowers Local Authorities to make and enforce decisions about the most appropriate licensing strategies for their local area;
 - Encouraging greater community involvement in licensing decisions and giving local residents the opportunity to have their say regarding licensing decisions that may affect them.
34. Each licence application will be considered on its own merits and in accordance with the Licensing Act 2003, secondary legislation, S.182 guidance and this policy.

Fundamental principles

35. Licensing is about regulating licensable activities on licensed premises, by qualifying clubs and at temporary events within the terms of the 2003 Act.
36. If an application for a premises licence or club premises certificate has been made lawfully and there have been no representations from Responsible Authorities or other persons, this Authority must grant the application, subject only to conditions that are consistent with the operating schedule and relevant mandatory conditions. (*conditions link - TBC*).
37. Conditions attached to the various authorisations will be focused on matters which are within the control of individual licence holders and others with relevant authorisations, i.e. the premises and its vicinity. This will include the direct impacts of the activities taking place at the licensed premises on members of the public living, working or engaged in normal activity in the area concerned.
38. Club premises certificates may only be issued to qualifying clubs. To be eligible for a club premises certificate, the club membership must have joined together for a particular social, sporting or political purpose. Qualifying clubs are specified in Section 61 of the Act, and sufficient evidence must be supplied with the application to satisfy those conditions. <https://www.legislation.gov.uk/ukpga/2003/17/part/4/crossheading/qualifying-clubs>
39. While this statement sets out the Council's general approach to the making of licensing decisions, nothing in this statement undermines the right of any individual to apply under the terms of the 2003 Act for a variety of permissions and to have any such application considered upon its individual merits.
40. Similarly, this statement of policy does not override the right of any person to make representations on an application or to seek a review of a licence or certificate where provision has been made for them to do so in the 2003 Act. Absolute weight will be given to all representations. However, this will not include those that are frivolous, vexatious or repetitious.
41. The Council may depart from this policy in the interest of promoting the licensing objectives if the individual circumstances of any case merit such a decision. Where such decision is

taken, full reasons for the departure from the policy will be given.

Provision of scale plans

42. Applicants are required to submit a current scale plan of the premises when making an application for a new premises licence and a scale plan of the proposed layout and existing layout when part of any application for a variation of a premises licence.
43. Plans need not be professionally drawn, but must be drawn to scale to allow the applicant to provide the information each relevant authority requires. It is useful to include the plans, the size of the original drawing (for example, "1:100 when printed at A4"). Smaller-scale plans may be accepted, subject to the agreement from the Licensing Authority.
44. For clarity, internal and external areas intended to be used for the purpose of consumption of on or off sales of alcohol and late-night refreshment should be included.

Variations and New applications

45. Where a premises licence holder wishes to amend their licence, the Act allows licence holders to vary the licence/certificate. Two variation processes exist: -
 - 1) A simplified minor variation process provides for proposed variations that have no adverse impact upon the licensing objectives.
 - 2) A major variation process provides for variations that change the licensed area or original authorisations and may have potential adverse impact upon the licensing objectives.
46. It should be noted that changes to the structure or layout may only satisfy licensing objectives with a new application for a new premises licence/certificate.
47. The decision on whether an application may be suitable rests with the licensing authority, and applicants should discuss their proposals with the Licensing Team before submitting their application.

Provisional statements

48. While an application for a new premises licence can be made in respect of a premises not yet constructed/completed or, where substantial changes are proposed but not sufficiently for any responsible authorities to make a determination in respect of the application, this Council would prefer to see provisional statements sought in the first instance.
49. However, the Council acknowledges that any person defined in section 16 of the Act can apply for a premises licence before new premises or existing premises are constructed, extended or changed, as long as clear plans of the proposed structure exist and the Applicant is in a position to complete an operating schedule.
50. Responsible authorities will require such conditions sufficient to ensure public safety and legislative compliance. For further information, please refer to s182 of the Statutory Guidance.

Temporary Events Notices

51. The Act provides for a person who does not have an authorisation under the Act to carry out

a licensable activity on an unlicensed premises or carry out any licensable activity outside of the terms of a premises licence or club premises certificate by way of “temporary event notices” (TENs). Instead, a person wishing to hold an event at which such activities are proposed to be carried on (the “premises user”) gives notice to the Licensing Authority of the event.

52. There are two types of TENs: -

- 1) A standard TEN, which must be given to the Licensing Authority with at least 10 clear Working Days’ notice before the event, with the appropriate fee; and
- 2) Late TEN, which must be given to the Licensing Authority no earlier than nine clear working days, but with a minimum of five clear working days with the appropriate fee notice before the event.

More information on TENs can be found at <https://www.gov.uk/find-licences/temporary-events-notice>

53. All Temporary Event Notice (TEN) submissions must include enhanced detail and clarity to support responsible and swift decision-making by the licensing authority and responsible authorities. Each TEN must provide the following information:

- Precise Location & Boundaries: TENs must specify the full postal address and clearly define the boundaries of the event footprint, including distinct areas such as marquees, stages, beer gardens, or outdoor zones.
- Structures & Layout: Applicants must describe all temporary or permanent structures (e.g., tents, stalls, stages), specifying their size, position, and relationship to any fixed building.
- Licensable Activities: Clearly state the types of licensable activities proposed, including alcohol supply (on-site consumption vs takeaway) and any form of entertainment (live/recorded music, dancing), linked to the Licensing Act categories.
- Event Context & Capacity: TENs must explain the purpose of the event (e.g., fundraising fair, private party) and provide a realistic attendance estimate to ensure compliance with the 499-person limit and the total event duration cap.
- Timing Details: Include exact start and finish dates and times, showing daily operating hours.
- Clear, Mapped Language: Use unambiguous terms for locations (e.g., ‘north field marquee,’ ‘rear beer garden’) and consider attaching a site plan to illustrate boundaries and layout—even if not mandatory, it is strongly encouraged.

54. Failure to provide sufficiently detailed plans may result in processing delays, objections, or counter-notices by the authority.

Multiple TENs for a single event

55. Section 171 of the explanatory notes to the Licensing Act 2003 with regard to Section 101 of the Act, “Minimum of 24 hours between event periods”, states that:

“This section provides that there must be a minimum period of 24 hours between temporary events held on the same premises by a premises user or held by that user and another person who is related to, associated with or in business with that user. This prevents a premises user holding numerous consecutive temporary events as a means of avoiding an application for a

premises licence. If a temporary event takes place on premises that are included within or include other premises where another temporary event takes place, then the two events are deemed to take place on the same premises.”

56. In addition to section 101 of the Licensing Act 2003, the Licensing Authority considers that the use of more than one TEN within the same or adjacent premises at similar times to allow an event of over 499 persons attending at any one time is likely to give rise to an increase in public nuisance and crime and disorder. The increased number of patrons over 499 persons also gives a greater concern on the impact of the event on public safety and the prevention of harm to children.
57. Organisers of events whereby patrons will exceed 499 should not use the “light touch” approach with multiple TENS. Such events should be licensed by an application for a time-limited premises licence, to allow full consultation of the proposal and measures to promote the licensing objectives and allow greater opportunities to grant the application with appropriate conditions to promote the licensing objectives where appropriate.
58. Multiple TENs that are similar in times, or within 24 hours of each other, for the premises included within or adjacent to the premises that receive objections from a relevant person will be considered by the Licensing Sub-Committee.
59. Premises users for multiple TENs will be given the opportunity to demonstrate how they will ensure that the licensing objectives will not be undermined and that the total maximum capacity of 499 will not be exceeded. This will be balanced against evidence provided by the Police and/or Environmental Health Officers.

Major art and pop festivals, carnivals, fairs and circuses

60. We encourage organisers of major festivals and carnivals to approach the Council at the earliest opportunity to discuss arrangements for the licensing of their events and may require a time-limited premises licence. This will involve the preparation of a substantial operating schedule, full public consultation and a longer lead-in period.
61. The Southwark Events Team coordinates a Safety Advisory Group (SAG) with membership comprising all the emergency response authorities, which can provide support to event organisers on event planning if good time is allowed. All major events will be scrutinised by the SAG. Contact details for the Events Team are provided in Appendix A

Consultation Arrangements

62. This Authority understands that regulations under the Act require public notices to be of a size equal to or larger than A4; of pale blue colour; printed legibly in black ink, and in a font size equal to or larger than 16. It also recognises that applications may not be rejected on the basis of improper notification if public notices comply with this minimum standard.
63. However, to ensure that the notice of application displayed at the premises may be clearly seen and easily read by passers-by, this Authority recommends that public notices displayed be of A3 size in pale blue colour printed legibly in black ink in a font of size equal to or larger than 20. This Authority also asks that the notice summarise the proposed licensable activities and the proposed hours of opening and remain clearly displayed in a position where it may be readily seen by passersby for the period during which representations may be made. A public notice template in our preferred format is available on the licensing webpages for each licence at: <https://www.southwark.gov.uk/business-and-licences/beer-and-business-premises-licences/premises-licences/apply-premises-0> which can be printed onto blue A4-sized paper.

Checks will be made to ensure that the summary is properly displayed.

64. The licensing service supports the consultation process by maintaining a public register at: <https://app.southwark.gov.uk/>
65. The register details all current applications (alongside details of current licensed premises). It is open to any person who wishes to be kept up to date with the latest applications in their area, to subscribe to “licensing alerts”. E-mail notifications are sent to subscribers when a new licence application is received within their local area. The licensing service will also notify local Ward Councillors of all new applications in their area.

Personal Licence Applications

66. Individuals who make an application for a personal licence from the 6th April 2017 must be entitled to work in the UK.
67. In order to discharge this duty, the Authority must be satisfied that an applicant has the right to work in the UK and requires applicants to submit one of the documents to demonstrate that the applicant has permission to be in the UK and that they are permitted to undertake work in a licensable activity. They do this in one of two ways:
 - a) by providing their ‘share code’ to enable the licensing authority to carry out a check using the Home Office online right to work checking service.
 - b) by providing copies or scanned copies of the documents which an applicant has provided, to demonstrate their entitlement to work in the UK as per information published on gov.uk and in guidance. [Employers' right to work checklist \(accessible\) - GOV.UK](#)
68. If a personal licence holder's right to live or work in the UK expires or is revoked, the personal licence will cease to have effect and must be returned to the licensing authority which issued it.

Responsible Authorities

69. The Responsible Authorities are public bodies which have a social and legislative interest in how licensed premises are managed. They must be notified of, and are entitled to lodge representations about, applications for premises licences or club premises certificates or variations. Responsible Authorities are also able to review a premises licence or club premises certificate.
70. Applicants should consult with the Responsible Authorities directly before making an application, as they will provide specific local advice and information about a draft operating schedule prior to submission. Contact details for the Responsible Authorities are given in Appendix A.
71. This Authority advises that it recognises the Southwark Children’s Social Service as a competent body to provide advice on matters concerning the protection of children from harm.
72. It should be noted that the Director of Public Health is added as a Responsible Authority. While health is not included as a licensing objective, the Guidance to the Act recognises that health bodies may hold information which other Responsible Authorities do not, but which would assist a Licensing Authority in exercising its functions.

73. The Secretary of State for Home Affairs is a Responsible Authority responsible for ensuring those not entitled to work in the UK, and this task is undertaken by the Home Office and various Enforcement departments. Legislation prevents the issue or transfer of a premises licence or issue of a personal licence to a person who is not entitled to work in the UK.²

Representations

It is open to any "Responsible Authority", as defined under the Act or other person to lodge representations concerning a premises licence or club premises certificate application during the consultation period.

74. A representation will only be "relevant" if it relates to the likely effect of the grant of the licence on the promotion of at least one of the licensing objectives. A representation that fails to do this is not "relevant" for the purposes of the 2003 Act. It is for the Licensing Authority to determine on its merits whether any representation by an interested party is frivolous or vexatious, as provided in Table 1 - delegations of licensing functions on page 22.
75. Representations must be received in writing at the licensing service office by the last date for representations. Representations must be dated, provide the grounds of representation in full and include the name and address of the person/body making the representation.

Disclosure of personal details of persons making representations

76. Concerned parties are entitled to approach their elected representatives or local residents' group who may submit a representation or review application on their behalf.

² [The Immigration \(Restrictions on Employment and Residential Accommodation\) \(Prescribed Requirements and Codes of Practice\) and Licensing Act 2003 \(Personal and Premises Licences\) \(Forms\) Order 2021](#)

Chapter 4 – SCHEDULE OF DELEGATIONS FOR DECISIONS

Determination of applications

77. In accordance with the provisions of the Act, this Authority has established a Licensing Committee with a maximum of 15 members and provision for Sub- Committees of three members to be drawn from the overall pool of the main Committee membership.
78. In doing so, the Council has established an efficient and cost-effective system for the determination of licences as recommended in the s.182 Guidance.
79. Where matters are subject of representations, the licensing service will normally attempt to reach a negotiated conclusion through a conciliation process. This service is provided to help develop workable agreed outcomes supported by all parties, which will also save the time and costs associated with holding a public hearing. Conciliation can be agreed up until 24 hours before a hearing takes place. Where this is not possible the application and representations to it will be considered by the Sub-Committee at a public hearing.
80. Table 1 below sets out the schedule of delegation of decisions and functions to the Licensing Committee, Sub-Committees and Officers.

Table 1 – Table of delegations of licensing functions			
Matter to be determined	Full Committee	Sub-Committee	Officers
Licensing policy	& Council Assembly		
Personal licence		If a Police or Secretary of State objection made	If no objection is made
Personal licence with unspent convictions		All cases	
Personal Licence where convicted of any relevant offence or foreign offence, or required to pay an		When the Authority becomes aware	
Premises licence / club certificate		If a relevant representation is made and not conciliated	When no relevant representation / all concerns conciliated
Provisional statement		If a relevant representation is made and not conciliated	If no relevant representation
'Major' variation of a premises licence / club premises		If a relevant representation is made and not conciliated	If no relevant representation
'Minor' variation of a premises licence / club premises			All cases
Variation of the designated premises supervisor		If a Police or Secretary of State objection made	All other cases

Request to be Removed as a designated premises supervisor			All cases
Transfer of premises licence		If a Police or Secretary of State	All other cases
Interim authority		If a Police or Secretary of State	All other cases
Review of a premises licence /		All cases	
Whether a representation is irrelevant,			All cases
Temporary event notice		If Police or Environmental Health objection is made	If no representation received.
Variation of a premises licence in respect of a community premises to include		If a Police objection	All other cases
Decision whether to consult other Responsible Authorities on minor variation application			All cases

Licence reviews

81. At any stage following the grant of a premises licence, a Responsible Authority, other persons, residents or businesses or a representative of these may ask the Authority to review a premises licence because of a concern about the premises in connection with any of the four licensing objectives.
82. In addition, a review of the licence will normally follow any action by the Police to close down a premises for up to 24 hours on grounds of disorder or nuisance, as a result of a magistrates' court direction sent to the Licensing Authority. A licence review can have several outcomes: modification of the conditions of the premises licence; exclusion of a licensable activity from the scope of the licence; removal of the designated premises supervisor from the licence; suspension of the licence for a period not exceeding 3 months or revocation of the licence.
83. Where a review of a premises licence is sought, this must relate specifically to an individual premises. The Licensing Authority may also reject an application made by an interested party if it determines that the ground for the review is repetitious, that it is substantially similar to an earlier review, following which a "reasonable interval" (i.e. 12 months according to statutory guidance) has not elapsed since the earlier application or since the grant of the premises licence.
84. Any evidence relied upon for a review (or any submitted representation) must be supplied to all parties within the consultation period. Any supplementary evidence following that period must be supplied at least 24 hours before the Hearing. It is the responsibility of the person bringing the review, or making a representation, to ensure that any supporting evidence (written or visual) is in an acceptable and usable format that can be circulated to all Responsible Authorities, the licence holder and any other interested parties. Evidence supplied should be complete at the point that it is submitted, with no expectation that the Council will add to their evidence or produce evidence from previous complaints or applications.

Applications for transfer of a premises licence following application for a review

85. This Authority is concerned over the frequently observed practice of an application for a transfer of a premises licence being made following an application for a review of that same licence being lodged.
86. Where, such applications are made, this Authority will require documented proof of transfer of the business / lawful occupancy of the premises (such as a lease), to the new proposed licence holder to support the contention that the business is now under new management control.

Annual fee payments

87. An annual maintenance fee is payable in respect of all premises licences and club premises certificates. If the annual fee is not paid when it is due, the Authority must suspend the licence or certificate. In such cases, the holder of the licence will be notified in writing, giving at least two working days' notice of the suspension date. Once suspended, the licensable activity authorised by that licence must cease. The Police and other Responsible Authorities will be informed, and monitoring checks will be made to ensure no licensable activity continues.
88. The suspension ends upon payment of the fee. Licence holders should ensure that the payment of the outstanding fee is brought to the attention of the licensing service in order that the suspension may be lifted.

Other regimes

89. This Authority will look to ensure consistency, as far as is possible within law, with other licensing and consent regimes.
90. In respect of 'agent of change', this has been referred to in the s.182 guidance at para 14.67: *".... Existing businesses and facilities should not have unreasonable restrictions placed on them as a result of development permitted after they were established. Where the operation of an existing business or community facility could have a significant adverse effect on new development (including changes of use) in its vicinity, the applicant (or 'agent of change') should be required by the local planning authority to provide suitable mitigation before the development has been completed."* [Revised guidance issued under section 182 of the Licensing Act 2003 \(November 2025\) \(accessible version\) - GOV.UK](#)
91. Further information on planning is available on the Council website at [Planning and building control for businesses | Southwark Council](#)
92. The planning, regeneration, building control and licensing regimes will be properly separated. To avoid duplication and inefficiency. Each regime involves consideration of different (albeit related) matters. Neither the Licensing nor the Planning Committees are bound by decisions made by the other.

93. This authority will not consider the issue of “need” in determining any licence application is a matter for planning control and the market. The Council will not impose quotas of premises or licences under the licensing regime.
94. When, as a condition of planning permission, the terminal hour has been set for the use of premises for commercial purposes differs from the permitted licensing hours, the Applicant must observe the earlier closing time. Premises operating in breach of their planning permission would be liable to prosecution under planning law.
95. This Authority notes and Guidance supports ‘that where businesses have indicated, when applying for a licence under the 2003 Act, and they have also applied for planning permission or that they intend to do so’,³ the Licensing Sub-Committee and Officers may consider discussion with their planning counterparts prior to determination with the aim of agreeing mutually acceptable operating hours and scheme designs” are in place. Contact details for obtaining Planning Consent or a Highway’s Table and Chairs Licence and applying for the use of a park are in Appendix A under other agencies.

³ Statutory Guidance November 2025 para 9.45 [Revised guidance issued under section 182 of the Licensing Act 2003 \(November 2025\) \(accessible version\) - GOV.UK](#)

Chapter 5 - DETERMINING APPLICATIONS FOR PREMISES LICENCES AND CLUB PREMISES CERTIFICATES

96. All applications for new premises licences or variations need to be supported by an operating schedule. The schedule must clearly establish the steps the Applicant proposes to promote the licensing objectives.
97. If an application for a premises licence or club premises certificate has been made lawfully and there have been no representations from Responsible Authorities or other persons, the Licensing Authority must grant the application in the terms sought, subject only to the relevant mandatory conditions and conditions that are consistent with the operating schedule. The Licensing Authority will have no discretion to refuse the application or to alter or add to the conditions arising from the operating schedule.
98. If relevant representations are received, then (unless the concerns raised are resolved through conciliation) a hearing of the application by the Licensing Sub-Committee will normally follow. At the hearing, each application will be considered upon its own merits with all relevant matters taken into account.
99. Having had regard to all relevant matters, the Sub-Committee will take such steps as it considers appropriate to promote the licensing objectives. This may include the refusal or part grant of the application, or adding to or modifying the conditions proposed in the operating schedule.
100. In exercising its discretion, the Licensing Sub-Committee will have regard (amongst other things) to the content of this licensing policy. Therefore, Applicants are advised to read the content of this policy carefully before drawing up their operating schedule. Where an operating schedule complies with this policy, it is generally less likely that a Responsible Authority or other person will object to it, or that any representation will succeed. Therefore, compliance with this policy is likely to assist the Applicant to avoid the delay and expense of a contested licensing hearing, and risk refusal of the application or the addition of unwanted conditions.
101. This is not to say that an opposed application which complies with the policy will necessarily be granted or that an opposed application which does not comply with it will necessarily be refused. Where there have been relevant representations, the Licensing Authority will always consider the merits of the case, and interfere with the operating schedule only when, and to the extent, considered appropriate to promote the licensing objectives. So, for example, following receipt of relevant representations, the Licensing Authority will not interfere with an operating schedule which does not comply with this policy where the steps proposed are sufficient to meet the licensing objectives in the individual circumstances of the case.
102. However, the policy represents the Licensing Authority's view of the best means of securing the licensing objectives in most normal cases. It has been drawn up in consultation with other expert bodies and Responsible Authorities, together with input from business operators and community stakeholders. While the contents of the operating schedule are a matter for the Applicant, in cases where there is objection to a schedule which departs from the policy, the licensing Sub-Committee hearing the opposed application will normally expect to be given good reason for the departure if it is to be asked to make an exception to the policy.
103. In this policy, there are a number of references to the Licensing Authority's expectations of Applicants. As explained, the policy is only engaged where the Licensing Authority has a discretion following the receipt of representations. In such cases, the Licensing Authority will

not apply the policy rigidly, but will always have regard to the merits of the case with a view to promoting the licensing objectives.

104. One particular expectation of Applicants is that they conduct a risk assessment in relation to the licensing objectives before completing an operating schedule. It is emphasised that there is no statutory requirement for this under the Licensing Act 2003. However, where no such risk assessment has been conducted, then if there are relevant representations leading to a hearing, the Licensing Sub-Committee may take a more precautionary approach than if the Applicant can demonstrate that a particular risk has been properly evaluated and either discounted or mitigated in the operating schedule.

Location and other relevant considerations

105. In considering applications for new licences, variations of existing licences and licence reviews, this Authority will take the following matters into account:
- Whether the premises is located within a current Cumulative Impact Area;
 - The type and mix of premises and their cumulative impact upon the local area;
 - The location of the premises and their character;
 - The views of the Responsible Authorities and other persons;
 - The past compliance history of the current management;
 - The proposed hours of operation;
 - The type and number of customers likely to attend the premises;
 - Whether the Applicant can demonstrate commitment to a high standard of management, for example, through the level of consideration given to the promotion of the licensing objectives; by active participation in Pub-Watch, Ask for Angela/Ask for Clive and adopting the Women's Safety Charter;
 - The physical suitability of the premises for the proposed licensable activities, i.e. in terms of safety, access, noise control, etc.
106. Applicants should refer to Appendix B of this policy for details of the current local Cumulative Impact Areas and, also, consider the general operating hours in Chapter 7 of this policy. Applicants should not try to replicate later operating hours even if there are other premises nearby that currently operate for longer. This Authority will carefully balance the conflicting needs of residents, patrons and businesses in relation to the introduction of premises and flexible opening hours for the sale and supply of alcohol and late-night refreshment.

High standards of management

107. When assessing the Applicant's or Licensee's ability to demonstrate a commitment to high standards of management this Authority will consider whether the Applicant or Licensee:
- Has researched the local area and can demonstrate understanding of local community concerns;
 - Has carried out relevant risk assessments and devised an appropriate strategy to promote the licensing objectives;
 - Can demonstrate comprehensive knowledge of best practice;
 - Has sought advice from the Responsible Authorities;
 - Has implemented any advice given by Responsible Authorities;
 - Is able to understand verbal and written advice and legal requirements;

- Can demonstrate knowledge of the licensing objectives, relevant parts of the licensing policy and their responsibilities under the 2003 Act;
- Is able to run their business lawfully and in accordance with good business practices;
- Is able to demonstrate a track record of compliance with legal requirements.

Mandatory conditions

108. There are a number of mandatory conditions set out within the Act (as amended by the Mandatory Licensing Conditions (Amendment) Order 2014. The mandatory conditions must be imposed upon all licences where relevant.

Other conditions

109. Conditions on a premises licence or club premises certificate are important in setting the parameters within which premises can lawfully operate. This Authority will aim to ensure that conditions attached to licences will:

- 1) Be appropriate for the promotion of the licensing objectives;
- 2) Be precise and enforceable;
- 3) Be unambiguous and clear in what they intend to achieve;
- 4) Not duplicate other statutory requirements or other duties or responsibilities placed on the employer by other legislation unless extending circumstances have demonstrated multiple breaches of that legislation and the condition/s are to prevent further breaches;
- 5) Be tailored to the individual type, location and characteristics of the premises and events concerned;
- 6) Not be standardised;
- 7) Not replicate offences set out in the 2003 Act or other legislation;
- 8) Be proportionate, justifiable and capable of being met;
- 9) Not seek to manage the behaviour of customers once they are beyond the direct management of the licence holder and their staff (but may impact upon the behaviour of customers in the immediate vicinity of the premises or as they enter or leave);
- 10) Be written in a prescriptive manner.

(conditions link - TBC]

Shadow licences

110. The Licensing Authority may consider granting applications for licences that duplicate the terms and conditions of the current operational licence for the same premises but are issued to the landowner or another person with an interest in the property. These 'Shadow Licences' are usually sought by landowners to protect their property interests due to policies that may refuse certain new applications. Such licences will be subject to a condition that prohibits its use whilst another licence is in place. A Shadow Licence will, in the event that a licence lapses, is surrendered or revoked (and incapable of being resurrected under the Act); shall require the holder of the licence to submit an application to the Licensing Authority to vary the Shadow Licence to remove any conditions preventing the use of the licence.
111. The Licensing Authority recognises that there is no restriction in the Licensing Act 2003 for there to be more than one licence to be in effect at any one time at the same premises to promote the licensing objectives and provide clarity as to which premises licence is being used to provide licensable activities. Conditions may be added to the additional premises licence application.

Chapter 6 - CUMULATIVE IMPACT AREAS (CIAs)

112. In areas where the number, type or density of licensed premises high, particularly those selling alcohol or providing late night refreshment serious problems of nuisance and disorder may arise outside or some distance from those premises
113. This concentration of customers when leaving premises or when queuing at fast food outlets or public transport, problems of nuisance and disorder may arise outside or some distance from those premises/locations
114. These concentrations of people may also attract criminal activities such as drug dealing, pickpocketing and street robbery, whereby local services, i.e. policing, public transport services, public lavatory provision and street cleaning, may not be able to meet the immediate demand
115. The cumulative impact of licensed premises on the promotion of the licensing objectives is a proper matter for a Licensing Authority to consider within its licensing policy and is now included in s.5a Licensing Act 2003
116. Applications made within specified Cumulative Impact Areas (CIAs) are therefore deemed likely to add to the potential impact the CIA is intended to avoid. Therefore, under this policy, there is an automatic presumption that such applications will be refused; however, each application must still be judged on its own merits
117. It is normally the case that a representation citing a relevant CIA will have to be determined at a Licensing Sub-Committee hearing. The Applicant should therefore expect to have to attend a hearing regarding their application from the outset
118. This Authority expects all applicants to be able to demonstrate their understanding reasons for the CIA, highlighting those reasons and mitigating those within their operating schedule.

Those areas subject to the CIA can be found in **Appendix B**.

Early morning restriction orders (EMRO)

119. There are no EMROs in Southwark at the time of writing this policy; however, this Authority may introduce an EMRO if it feels it is 'appropriate' for the promotion of any of the licensing objectives.

Late Night Levy

120. The Late Night Levy is a discretionary power, which this Council adopted in 2019 ⁴ to assist Local Authorities and the Police to manage and improve the night-time economy.
121. The levy allows the Council to charge a fee (set nationally by the government) based upon the ratable value of premises that hold a premises licence or Club premises certificate to sell/supply alcohol between 00:01 and 06:00. This charge applies whether these licensed hours are used or not and is dependent on the ratable value of the premises, and the amounts of levy are set by the government.

⁴ [Notice of proposal to introduce a late night levy in the London Borough of Southwark | Southwark Council](#)

Exemptions from the levy

122. The following premises are allowed an exemption:

- a) Premises with overnight accommodation which have no facilities to serve alcohol to non-residents.
- b) Theatres and cinemas. where the sale of alcohol is for ticket holders for that event or participants in the production, and their invited guests.
- c) Bingo Halls licensed under the Gambling Act, where live bingo is the primary function.
- d) Community Amateur Sports Clubs. Currently registered with CASC & HMRC.
- e) Community premises that have successfully applied for the replacement of the mandatory 'designated premises supervisor' licence condition.
- f) Businesses participating in a qualifying Business Improvement District where there an existing BID levy is to promote the reduction or prevention of late-night disorders.
- g) New Year's Eve premises. This applies to premises which are not authorised to sell/supply alcohol between 00:00 (midnight) and 06:00 except on New Year's Day ONLY.

Reduction

123. The Council may decide that a where a Levy is in effect, a reduction of 30% of the levy payable may be offered to all premises selling alcohol and providing late night refreshment between 00:00 (midnight) and 06:00.

Chapter 7 – HOURS OF OPERATION

Licensing hours

124. Prior to the introduction of the Licensing Act 2003, the Government believed that fixed and artificially early closing times were one of the key causes of both rapid binge drinking prior to closing times and of disorder and disturbance when large numbers of customers were simultaneously required to leave licensed premises. An aim was to reduce the potential for concentration of customers from licensed premises and achieve a slower dispersal of people through flexible opening times.
125. Current Guidance now states that the Government acknowledges that different licensing approaches may be appropriate for the promotion of the licensing objectives in different areas. The 2003 Act gives the Licensing Authority power to make decisions regarding licensed opening hours as part of its implementation of the licensing policy and Licensing Authorities are best placed to make such decisions based on local knowledge and in consultation with other Responsible Authorities.
126. This Authority recognises the increase in the number of premises licensed for the sale or supply of alcohol since the introduction of the 2003 Act and, particularly, the increase in the number and density of such premises within the night-time economy. In such a densely populated borough as Southwark, where there is often little demarcation between residential and commercial areas, the potential for late operating venues and businesses to cause nuisance and disturbance to local residents is considerable. Therefore, there will be no presumption in favour of lengthening licensing hours. The four licensing objectives should always be paramount considerations.
127. Table 2 (page 32) provides a guide for Applicants when preparing their operating schedules as to the hours of operation that this Authority might consider appropriate by type of premises and (planning) area classification. These hours are not pre-determined, and each application will be considered on its own merits.
128. You can check to see the recommended hours in a particular area by using Southwark Maps: <https://geomap.southwark.gov.uk/connect/analyst/mobile/#/login?mapcfg=%2FAnaly%20st%2FNamedProjects%2FSouthwark%20licencing%20areas>
129. However, Applicants for licences incorporating hours that fall outside of the guidance offered are expected to explain fully within their application the arrangements intended to be put in place to ensure that the premises do not add to the cumulative impact, or to disturbance and/or disorder in the area late at night. Applicants who wish to provide licensable activities outside the hours specified should ensure that the operating schedule specifies detailed measures to mitigate against crime, disorder and public nuisance, taking into account the following:
 - 1) The location of the premises and the character of the local area.
 - 2) The proposed hours during which the licensable activities are proposed to take place.
 - 3) The adequacy of the proposed control measures intended to promote the licensing objectives.
 - 4) The availability of local public transport.
 - 5) The proximity of the premises to other licensed premises of a similar nature and the hours of operation of those premises.

130. Operating schedules with insufficient detail are more likely to be refused, have limitations in hours applied, or have additional conditions imposed upon them by the Licensing Sub-Committee. The Licensing Authority may impose further limitations in hours upon review of the licence, particularly where the premise is shown to be the focus or cause of nuisance or anti-social behaviour.
131. Applicants should note that where applications relate to premises that are located within more densely populated areas, stricter controls with regard to noise control may be necessary. For guidance, please see Chapter 8 on the prevention of public nuisance.

Table 2 = Recommended Licensable Hours

Type of premises	Hours	Major Town Centres and Strategic Cultural Area	District Town Centres	Local Centres and Small Shopping Parades	Residential / Mixed Use areas
		• Bankside and Borough • London Bridge • Canada Water • Elephant and Castle (including Walworth Road) • Peckham • St Mary's Churchyard (Rotherhithe)	• Camberwell • Herne Hill Lordship Lane <i>Note: Borough and Bankside, and London Bridge are also classified as District Town Centres. However, they have dual categorisation as Strategic Cultural Areas; therefore, the latter hours apply</i>	• The Blue Dulwich Village • Nunhead • Forest Hill Road • Great Suffolk Street • Southampton Way • Southwark Park Road	All other <i>We recognise that certain areas within the borough are not residential, and all such applications will be determined on their individual merits</i>
Restaurants and cafes	Start Time	No specified start time. Applicants are required to specify this in their application			
	End Time	Sun to Thurs: 00:00 Fri to Sat: 01:00	Sun to Thurs: 00:00 Fri to Sat: 0:100	Sun to Thurs: 23:30 Fri to Sat: 00:30	23:00 daily
Public houses, wine bars, or other drinking establishments and bars in other types of premises	Start Time	Mon to Sun: 11:00	Mon to Sun: 11:00	Mon to Sun: 11:00	Mon to Sun: 11:00
	End Time	Sun to Thurs: 23:00 Fri to Sat: 00:00	Sun to Thurs: 23:00 Fri to Sat: 00:00	Sun to Thurs: 23:30 Fri to Sat: 00:00	23:00 daily
Hotel bars and guest houses	Start Time	No restrictions for hotel residents			
	End Time	No restrictions for hotel residents			
Night clubs (with 'sui generis')	Start Time	Mon to Sun: 11:00	Mon to Sun: 11:00	Not considered appropriate	Not considered appropriate

planning classification)	End Time	Mon to Thurs: 01:00 Fri to Sat: 06:00 Sun: 00:00	Sun to Thurs: 00:00 Fri to Sat: 01:00	Not considered appropriate	Not considered appropriate
Off-licences and alcohol sales in grocers and supermarkets	Start Time	Mon to Sun: 11:00	Mon to Sun: 11:00	Mon to Sun: 11:00	Mon to Sun: 11:00
	End Time	00:00 (midnight) daily	00:00 (midnight) daily	00:00 (midnight) daily	00:00 (midnight) daily
Take-away premises LNR	A licence is required between 23:00 and 05:00 for the sale of hot food and/or hot drinks. Outside of these times is not a licensable activity under the Licensing Act 2003				
	End Time	Sun to Thurs: 00:00 Fri to Sat: 01:00	Sun to Thurs: 00:00 Fri to Sat: 01:00	Sun to Thurs: 23:00 Fri to Sat: 00:00	Not considered appropriate
Cinemas and theatres	Start Time	No specified start time. Applicants are required to specify this in their application			
	End Time	02:00 daily	01:00 daily	00:00 (midnight) daily	23:00 daily
Vessels	Start Time	No specified start time. Applicants are required to specify this in their application			
	End Time	23:00 daily	23:00 daily	23:00 daily	23:00 daily
Qualifying members' clubs	Start Time	No specified start time. Applicants are required to specify this in their application.			
	End Time	02:00 daily	01:00 daily	00:00 (midnight) daily	23:00 daily
Event premises/ spaces where the sale of alcohol is included but ancillary to a range of activities, including meals	Start Time	Monday to Sunday: 11:00 (inclusive of Bank Holidays)			
	End Time	Sun to Thurs: 00:00 Fri to Sat: 01:00	Sun to Thurs: 00:00 Fri to Sat: 01:00	Sun to Thurs: 00:00 Fri to Sat: 01:00	23:00 Daily

132. It should be noted that there are three areas which are strategic cultural areas (SCA) that are situated outside a major town centre, two fall part of the Borough and Bankside SCA and a third area in Rotherhithe, these are listed below:

- 1) Shad Thames area bounded by Tower Bridge Road, Tooley Street, St. Saviours Dock and the River.

- 2) Triangle area bounded by Bermondsey Street, Tower Bridge Road and the Railway.
 - 3) St Mary's Churchyard area, Rotherhithe.
133. It is recognised that these areas, although of mixed use, have a high residential usage and consideration for the later hours beyond those recommended for a residential area should be accompanied by evidence that the proposal is intended to enhance the provision of arts, culture and tourism in the area.
134. For premises that do not fall within one of the types of premises listed the on sale of alcohol shall be considered to fall within the premises type for a bar, some examples may be breweries with a tap room for on sales of alcohol, a hotel bar for non- residents, a bar or supply of alcohol in an office/workspace and event spaces which does not fall into the event premises/space category.
135. Similarly for types of premises that sell off sales of alcohol but do not fall within one of the listed categories shall be considered to fall within the premises type for an off-licence, for instance "petrol stations," where the restriction to sell alcohol under section 106 of the Licensing Act 2003 does not apply, the premises may be considered as predominately being a grocers.
136. Where the sale of alcohol is not considered the primary activity of the premises, then it is appropriate to condition the sale of alcohol as ancillary to the primary activity, for instance, to qualify for the restaurant hours, alcohol should be mainly ancillary to the provision of food.
137. For the purpose of this policy, the following area classifications have been made:
- 1) **Major Town Centres and Strategic Cultural Areas** – Bankside and Borough, London Bridge Canada Water, Elephant and Castle (including Walworth Road), Peckham, St Mary's Churchyard (Rotherhithe)
 - 2) **District Town Centres** – Camberwell, Herne Hill and Lordship Lane.
(Note: Borough and Bankside, and London Bridge are also classified as District Town Centres. However, they have dual categorisation as Strategic Cultural Areas; therefore, the latter hours apply.)
 - 3) **Local Centres and Small Shopping Parades** – The Blue, Dulwich Village, Nunhead, Forest Hill Road, Great Suffolk Street, Southampton Way, Southwark Park Road
 - 4) **Residential / Mixed Use** – All other.

Chapter 8 – LICENSING OBJECTIVES

THE PREVENTION OF CRIME AND DISORDER

138. The Council recognises that well run licensed premises can make a valuable and positive contribution to the local community through the local economy, tourism, and cultural development. Southwark also has a duty under the Crime and Disorder Act 1998 to make reasonable actions to prevent crime and disorder.
139. However, poorly managed licensed premises, especially those offering late night alcohol and/or entertainment, or late-night refreshment for large numbers of people, can become a serious source of crime and disorder or anti-social behaviour.
140. This Authority expect Applicants for premises licences and club premises certificates to have made relevant enquiries about the local area and prepare their operating schedule on the basis of a risk assessment of the potential sources of crime and disorder associated with the premises operation. The operating schedule should demonstrate an understanding of the level of risk of crime and disorder and include positive proposals to manage any potential risk.

Relevant issues might include (but not limited to):

- 1) Anti-social behaviour;
 - 2) Drunkenness on the premises;
 - 3) Public drunkenness;
 - 4) Violent behaviour;
 - 5) The possession of weapons;
 - 6) Drugs use;
 - 7) Underage drinking;
 - 8) Theft of personal property;
 - 9) Trafficking and illegal workers;
 - 10) Prostitution, lewd acts and similar offences;
 - 11) Child sexual exploitation;
 - 12) Harassment;
 - 13) Counterfeit goods;
 - 14) Non-duty paid goods and tax evasion;
 - 15) Maintenance of smoke-free environments, including shisha bars.
141. Applicants are recommended to seek advice from the Council's Licensing Team, the Police and Trading Standards when carrying out their risk assessments and in preparing their operating schedules.
142. Southwark is committed to supporting the Mayor of London's Women's Night Safety Charter (WNSC) ⁵ together with those schemes aimed at protecting the vulnerable participating in the night-time economy and profiled at Appendix C.

Door Supervision

143. Door supervisors will often play an important key role in ensuring that well managed premises are free from crime and disorder and nuisance problems. A reminder is given that

⁵ [Women's Night Safety Charter | London City Hall](#)

where a premises licence (other than for plays or films) includes a condition that at specified times there must be persons employed for the purposes of security; protection; screening the suitability of persons entering premises; or dealing with conflict in pubs, clubs and other licensed premises open to the public, then such persons must be registered with the Security Industry Authority (SIA). In any event it is in operator's own interests to ensure that all security staff employed, whether under contract or employed in-house are so licensed, since the operator may be legally liable for their actions. Licensed door supervisors will have undergone an identity and criminal record check and have received suitable training. It is recommended that employers should consider using only SIA approved contractors to source.⁶

The sale and possession of smuggled, bootlegged or counterfeit products and the handling of stolen goods

144. Any holder of a premises licence, designated premises supervisor, any member of staff or club officer where a club premises certificate is granted, user of a premises for which a Temporary Event Notice is currently permitted or, any person carrying out paid or unpaid work at such premises, knowingly keeps or allows to be kept on those premises, any goods which have been imported without payment of duty or which have otherwise been unlawfully imported commits a criminal offence within this act. To prevent these offences from occurring, the licensee is expected to carry out its necessary due diligence. It should be noted that on conviction for offences relating to counterfeit products, confiscation for the proceeds of crime may be sought by the Council. Advice on this can be obtained from the Council's Trading Standards Service.

Theft of personal property

145. Important steps that can be taken to reduce the risk of theft of personal property include:

- 1) Raising the level of awareness among customers of the risk of theft of personal property through crime prevention information. This is especially important within premises where there is a high level of transient tourist trade.
- 2) Provide controlled cloakroom areas;
- 3) Provide Chelsea clips under tables;
- 4) Ensure all areas of the premises are well lit and able to be observed by staff.
- 5) Direct staff to observe the customer areas and politely raise with customers when personal belongings are left unattended;
- 6) Provide and publicise internal CCTV;
- 7) Ensure adequate staffing levels and provide appropriate staff training.

Adult Entertainment

146. The Licensing Authority, along with the Responsible Authorities, have concerns that the licensing objectives are engaged by the operation of premises where nudity, partial nudity or adult entertainment of a sexual nature is carried out. Applicants are required to state in their Operating Schedule that they propose to offer nudity, partial nudity or adult entertainment of a sexual nature.

⁶ [Security Industry Authority - GOV.UK](https://www.gov.uk/government/organisations/security-industry-authority)

PUBLIC SAFETY

147. Licence holders have a responsibility to ensure the safety of those using their premises, under the Licensing Act 2003. This responsibility extends to other regulatory regimes requiring managers and employees to be vigilant to risk; dynamically assessing the risks to prevent accidents and injuries due to structure, design and maintenance. With due consideration given to the events promoted on those premises where alcohol consumption and vulnerable customer mix.
148. Licensable activities may take place within a broad range of premises: cinemas; theatres concert halls; night-clubs, bars and public houses; restaurants and cafes fast food outlets.; supermarkets, off-licences. Each of these types of operation potentially presents a mixture of risks common to most premises. Others are unique to specific operations it is essential that premises are constructed or adapted, configured and managed in a manner which acknowledges these risks and safeguards occupants against them. Fire prevention and evacuation guidance documents is made available for each type of premises and operation.
149. This Authority is committed to ensuring the safety of people visiting and working in licensed premises. This Authority expects all applicants for premises licenses and club premises certificates to be able to demonstrate their understanding of the risks and hazards attributed to their premises, operation, venue style and customer base by highlighting those risks and mitigation within their operating schedule.
150. A number of matters should be considered in relation to public safety. These may include:
 - 1) Premises configuration and site layout arrangements including adequate means of escape and signage;
 - 2) Fire safety;
 - 3) Emergency systems;
 - 4) Temporary structures;
 - 5) Ensuring appropriate access for emergency services, such as ambulances;
 - 6) Good internal and external communication systems, including with Local Authorities and emergency services (for example, communications networks with the Police and signing up for local resident incident alerts);
 - 7) Ensuring the presence of trained first aiders on the premises and appropriate first aid kits;
 - 8) Hygiene and welfare facilities;
 - 9) Special installations and special effects;
 - 10) Ensuring the safety of people when leaving the premises (for example, through the provision of information on late night transport);
 - 11) Ensuring appropriate and frequent waste disposal, particularly of glass and bottles;
 - 12) Ensuring appropriate safe limits on the maximum capacity of the premises;
151. Statutory guidance advises applicants to seek advice from the Council's Health and Safety Team and/or local fire safety Officers before submitting any application. (see contact details in Appendix A of this document)
 - 1) Model National and Standard Conditions for Places of Public Entertainment and Associated Guidance ISBN 904031 11 0 (Entertainment Technology Press – ABTT Publications).

- 2) The Event Safety Guide - A guide to health, safety and welfare at music and similar events (HSE 2002) ("The Purple Book") ISBN 0 7176 2453 6.
- 3) Managing Crowds Safely – A Guide for Organisers of Events and Venues (HSE 2000) ISBN 0 7176 1834 7.
- 4) 5 Steps to Risk Assessment: Case Studies (HSE 1998) ISBN 07176 15804.
- 5) The Guide to Safety at Sports Grounds, Published by the Safety at Sports Grounds Authority ("The Green Guide") 2007 ISBN 9780117020740.
- 6) Fire Safety Risk Assessment – "Open Air Events and Venues" (ISBN 978 1 85112 823 5), which is available from the Communities and Local Government website www.communities.gov.uk/fire
- 7) Technical Standards for Places of Public Entertainment 2013 – The Association of British Theatre Technicians; The Chartered Institute of Environmental Health; The District Surveyors' Association; and The Institute of Licensing.
- 8) Safer Clubbing - Produced by the Home Office in conjunction with the London Drugs Policy Forum.

The following British Standards should also be considered.

- 9) BS 5588 Part 6 (regarding places of assembly);
- 10) BS 5588 Part 9 (regarding ventilation and air conditioning systems);
- 11) BS5588 Part 9 (regarding means of escape for disabled people);
- 12) BS 5839 (fire detection, fire alarm systems and buildings);
- 13) BS 5266 (emergency lighting systems).

PREVENTION OF PUBLIC NUISANCE

152. This Authority expects Applicants for premises licences and club premises certificates to have made relevant enquiries about the local area, recognising the impact their operation may have on the neighbourhood, through light pollution, noxious smells, or noise escaping from premises or their outdoor areas. Particular consideration must also be given when patrons congregate outside awaiting entry, and similarly as they leave the venue awaiting transport home.
153. This Authority expects all applicants for premises licenses and club premises certificates to be able to demonstrate their understanding of the likelihood of the environmental impact on the community through their operation, highlighting those risks and the mitigation required and put in place within their operating schedule.
154. Relevant considerations might include:
 - Preventing disturbance caused by patrons upon arrival, when queuing or being admitted to the premises, while congregating outside the premises, or upon departure. This particularly (though not exclusively) between 22:00 and 08:00;
 - The provision of adequate parking arrangements for customers, preventing illegal parking and obstruction of emergency and other vehicles;
 - The prevention of queues of traffic forming outside the premises;
 - The availability of alternative public transport and local provision for licensed taxis or private hire vehicles, including arrangements to ensure their use does not cause disturbance to local residents;
 - The use of public transport/active travel should be positively encouraged;

- Preventing noise and vibration escaping from the premises, including from music played upon the premises, public address systems, and customer noise;
 - Preventing nuisance from the positioning and operation of plant and machinery such as kitchen extraction systems, ventilation plant, condensers, etc.;
 - The need for regular patrols of the boundary of the premises and/or at the nearest residential points to ensure nuisance impacts are not being experienced by neighbours;
 - Controlling disturbances that may be caused by the use of external areas. This should include gardens and terraces as well as other open-air areas, including the highway (particularly in relation to the smoking ban and passage of patrons between internal and external areas);
 - Arranging clear-up operations conducted by staff so they do not cause a nuisance and controlling staff departures;
 - Restricting delivery and collection times (waste, equipment and consumables) to between 08:00 and 20:00;
 - Limiting any nuisance or glare caused by the positioning of external lighting, including security lighting;
 - Preventing odour or pests from refuse storage and waste disposal, and the accumulation of litter and smokers waste in the vicinity of the premises;
 - Preventing odour from food preparation and having adequate kitchen extraction systems in place.
155. Applicants are recommended to seek advice from the Council's Environmental Protection Team when preparing their operating plans and schedules. Where relevant, Applicants are also advised to refer to:
- 1) The Institute of Acoustics "Good Practice Guide on the Control of Noise from Pubs and Clubs";
 - 2) Noise at Work Guidance for employers on the Control of Noise at Work Regulations 2005 issued by the Health and Safety Executive and obtainable from [Noise at work: A brief guide to controlling the risks INDG362](#) ;
 - 3) In the case of large music events, the Code of Practice on Environmental Noise Control at Concerts produced by the Noise Council, together with Southwark Events Team policies;
 - 4) Guidance on the Control of Odour and Noise from Commercial Kitchen Exhaust Systems produced by EMAQ (2018) ;
 - 5) Guidance Notes for the Reduction of Obtrusive Light – Institute of Lighting Engineers (2005);
 - 6) Southwark's Environmental Protection Team's Technical Guidance for Noise (2017).

Outdoor events/other large events

156. Each year, Southwark hosts a large number of outdoor community events. These events add to the vibrancy of the Borough and are enjoyed by both residents and visitors alike. It is important that such events are organised and managed to ensure that minimum disturbance is caused to people living and working nearby.
157. Applicants should follow the guidance for all premises licence applications and must consult with Southwark's Events Team early in the planning process for any event and submit an 'Event Management Plan' to the Council's Environmental Protection Team with their application.

158. Responsible Authorities will assess all licence applications for their impact with regard to public nuisance. Nuisance from outdoor events can be created by many activities, for example:
- Set up rigging / de-rigging;
 - Vehicle movements on and around the site;
 - Patrons congregating and dispersing;
 - Parking arrangements;
 - Music and entertainment;
 - Fireworks and special effects;
 - Smoke;
 - Odour from concessions or open food preparation;
 - Lighting;
 - Operation of plant and machinery (including generators, etc.);
 - Litter.
159. This Authority expects all event organisers to include a 'nuisance management plan, be able to demonstrate their understanding of the likely impact on the community through their operation, highlighting those risks and the mitigation required to be put in place within that event management plan.
160. The nuisance management plan should include the following information:
- Location and site plan;
 - Date/hours of operation. It is suggested that a finishing time of 22:00 is appropriate; however, an earlier finish time may be requested, subject to local circumstances;
 - Information on the type of event, with programme and timetable;
 - Orientation of any stage(s), marquees or potential sources of noise;
 - Plans for access to and from the site and site routes within the event perimeter;
 - Location of operational plant and vehicles;
 - Background noise survey and predictive noise assessment;
 - Details of event and stage management structure, including names and contact details for persons responsible for liaison with Council and other Enforcement Officers at the event; for management of sound systems; recording of noise levels; dealing with complaints and keeping records of and remedial actions; and attending pre-event and post-event audit meetings with the Authority;
 - Details of noise control measures:
 - Sound limiting technology to be used.
 - Maximum noise/bass levels.
 - Selection of equipment, etc.
 - Location of light sources and light impact assessment;
 - Litter control, waste management and recycling provisions;
 - A copy of the pre-event information leaflet to be dropped to occupiers of nearby noise sensitive premises.
161. Licensees should be aware that a range of other consents may be necessary to provide smoking shelters or space heaters, awnings, tables and chairs, metal or rope barriers or 'A' boards on the highway. Please discuss your proposals with the Licensing Team in the first instance (see Appendix A for contact details).

THE PROTECTION OF CHILDREN FROM HARM

162. The protection of children from harm includes the protection of children from moral, psychological and physical harm. This includes not only protecting children from the harms associated with alcohol but also wider harms such as exposure to strong language and sexual expletives (for example, in the context of exposure to certain films or adult entertainment). Licensing Authorities must also consider the need to protect children from sexual exploitation when undertaking licensing functions.
163. This Authority expects Applicants for premises licences and club premises certificates to have prepared their operating schedule on the basis of a risk- assessment of the potential sources of harm to children. It is expected that the operating schedule will demonstrate an understanding of the potential risks to children and set out the steps to be taken to protect children from harm when on the premises.
164. Relevant considerations might include (but not limited to):
- 1) Preventing access to alcohol and other age-restricted products;
 - 2) Removing encouragement for children to consume alcohol;
 - 3) Preventing exposure to gaming;
 - 4) Preventing exposure to adult entertainment or facilities.
165. Applicants are advised to seek advice from the Southwark Children's Social Care Services when preparing their operating plans and schedules. Southwark Trading Standards are also available to give advice around age verification schemes and preventing underage sales. See Appendix A for contact details.
166. This section of the strategy is intended to provide a guide to prospective licence Applicants as to the types of controls that may be appropriate for the promotion of the protection of children from harm licensing objective. It is neither intended to provide a definitive list of preventative measures nor will the controls listed be appropriate in every circumstance. They are provided to be considered and modified to fit the proposed business operation.169. Applicants should note that where its discretion is engaged following the consideration of relevant representations, the Licensing Authority will consider attaching appropriate conditions to protect children from harm.

Access to premises by children

167. The act makes it an offence to permit children under the age of 16, who are not accompanied by an adult to be present on premises being used exclusively or primarily for the supply of alcohol for consumption on those premises, under the authorisation of a premises licence, club premises certificate or where that activity is carried on under the authority of a temporary event notice. In addition, it is an offence to permit children under 16 who are not accompanied by an adult, between 00:00 (midnight) and 05:00 at other premises supplying alcohol for consumption on the premises, under any such authority.
168. The Council recognises, however, that licences may be sought for a great variety of premises, including theatres, cinemas, restaurants, concert halls, take-away and fast-food outlets as well as public houses and nightclubs. While the Council would encourage Applicants to make provision for the access of children where appropriate, conditions restricting the access of children will be strongly considered in circumstances where:
- 1) Adult entertainment is provided;

- 2) A member or members of the current management have been convicted for serving alcohol to minors or with a reputation for allowing underage drinking;
 - 3) It is known that unaccompanied children have been allowed access;
 - 4) There is a known association with drug taking or drug dealing;
 - 5) The premises are used exclusively or primarily for the sale of alcohol for consumption upon the premises.
169. Applicants must be clear in their operating schedules about the activities intended to be provided and the times at which these shall take place, in order to help determine when it is not appropriate for children to enter the premises.
170. Conditions should reflect the licensable activities taking place on the premises. Consideration should be given to appropriate conditions.
- 1) Restricting the hours when children are present;
 - 2) Restricting or excluding children under a specified age when particular specified activities take place;
 - 3) Restricting the parts of the premises to which children may have access;
 - 4) Imposing age restrictions (below 18);
 - 5) Requirements for an accompanying adult;
 - 6) Full exclusion of people under the age of 18 years from the premises.

Age Verification Policies

171. It is a mandatory licence condition for premises that sell or supply alcohol to have an age verification policy in place. The Authority favours the Challenge 25/Check 25 type schemes. Such a scheme volunteered as part of an operating schedule.
172. A digital form of proof of age approved by the Proof of Age Standards Scheme (PASS) would be deemed satisfactory.
173. Southwark's Trading Standards service, as a Responsible Authority, considers every licence application made to the Licensing Authority and makes recommendations on an appropriate range of management controls, especially with regard to preventing underage sales of alcohol and the protection of children from harm.

Underage Sales/The Purchase and consumption of alcohol by children and young persons

174. Trading Standards also conducts underage sales test purchasing operations to monitor compliance. Where possible, such operations follow the Office of Product Safety and Standards (OPPS) published code of practice for regulatory delivery on age-restricted products and services.
175. Trading Standards' current guidance for preventing underage includes the elements set out below. The guidance takes into account the government's published Age-Related Products and Services Framework. It is recommended that all operators give careful consideration to introducing such controls into their management practices and operating schedules. The guidance may be revised in light of new developments. Such practices include:
- 1) Challenge 25 should form part of the mandatory age verification policy. The policy should require the production of evidence of age, comprising any Proof of Age Standards Scheme (PASS) approved proof of age, passport or driving licence, from any person who

- is attempting to buy alcohol and who appears to staff engaged in selling or supplying alcohol to be under 25 years old;
- 2) Challenge 25 notices and point of sale material should be displayed informing customers and staff that sales of alcohol will not be made to anyone appearing to be under 25 unless they can prove they are 18 or over;
 - 3) Evidence of the operation of Challenge 25 (in the form of documented procedures) should be maintained and made available for inspection by authorised council officers or the Police;
 - 4) All staff to be trained in the prevention of sales of alcohol to underage persons (including the prevention of 'proxy sales') and the age verification Challenge 25 policy.
 - 5) An incident log or refusals register shall be maintained to record details of all refused sales of alcohol in order to demonstrate effective operation of the Challenge 25 policy.
 - 6) CCTV recording systems shall be positioned to capture the sale of alcohol.
 - 7) A personal licence holder shall be on the premises at all times that alcohol is supplied;
 - 8) An EPOS (electronic point of sale) system is installed at the premises which is configured to prompt the operator to check proof of age when an alcoholic product is scanned.
 - 9) The DPS shall ensure that, as far as is reasonably practical, alcohol for exposed sale is displayed in an area which can be constantly monitored or supervised by staff, separate from goods likely to be purchased by persons under 18;
 - 10) If any advertising campaigns or promotions of alcohol are planned, the premises licence holder shall ensure they are carried out in a socially responsible manner and that they do not encourage irresponsible drinking and shall cease where an authorised council officer or the Police raises concerns about the campaign or promotion.
 - 11) Children and responsible drinks promotions
176. The Portman Group operates on behalf of the alcohol industry, the 'Code of Practice of the Naming, Packaging and Promotion of Alcoholic Drinks', to ensure that alcohol is marketed responsibly and only to adults.
177. The Code applies to all alcohol marketing (including naming, packaging, and promotion of products, event sponsorship and point of sale material) which is primarily UK-targeted and not already subject to regulation by the Advertising Standards Authority (ASA) or Ofcom. The Code can be viewed at <https://www.portmangroup.org.uk/codes-of-practice/>

Film Classification

178. Films intended only for local exhibition may be classified by the local Licensing Authority as an alternative to the BBFC. This Authority has a Film Viewing Board for that purpose.
179. For a local age classification to be considered, it is important that good notice (a minimum of 2 months) is given of the proposed exhibition. It is necessary for the Board to view the version of the film that is intended to be exhibited, and so a good quality copy on acceptable media is required in advance of the exhibition. The following information is to be provided by the proposed exhibitor:
- 1) a synopsis of the film program(s) must be sent to the Licensing Unit a minimum 2 months in advance of the proposed screening date, where possible, giving sufficiently detailed and accurate information on any potentially controversial issues such as: discrimination,

- drugs, horror, imitable behaviour, language, nudity, sex, theme, violence and in particular anything considered over 18 (e.g. R18);
- 2) information on active and thorough child protection policies, including any permission processes required to be obtained for children to appear in any film exhibition;
 - 3) information on how staff are informed on policies and matters that may be significant at the time of the exhibition;
 - 4) information on feedback and evaluation procedures;
 - 5) information as to the steps that will be taken to display notices inside and outside the premises so that persons entering can readily read them and be aware of the classification attached to the film;
 - 6) information on the use of sufficient ushers/stewards (minimum 18 years old) to be in attendance at the entrance to the viewing room at all times, to ensure that only children who may view the film or exhibition are permitted access.
180. A fee to offset the costs of classifying a film, based on the film's duration, will be charged.
 181. The Licensing Authority will not reclassify films already classified by the BBFC except where the parts of the film have been edited to remove content that may result in a lower classification.
 182. Please contact the Licensing Team to discuss your exhibitions (see Appendix A for contact details). For other safeguarding considerations, please see Appendix C.
 183. Where a premises licence with the authority to show films wishes to provide special screening, such as mother/parent and baby screening, a variation application or TEN can be submitted to the licensing authority. (Please refer to Chapter 3 for TENS).
 184. Applicants are expected to include within their operating schedule any arrangements for restricting children from viewing age-restricted films. For other safeguarding considerations, please see Appendix C.

Regulated entertainment provided for children

185. Where entertainments or facilities are generally provided specifically for children, Applicants are asked to demonstrate within their application:
 - 1) That the company/organisation has a policy or statement on keeping children safe from harm;
 - 2) How employees or contracted agencies will be made aware of the company's / organisation's policy/statement on keeping children safe from harm;
 - 3) That recruitment processes for staff who may have to deal directly with children under the age of 18 seek to ensure, as best the company/organisation can, that the appointed Applicant has not been known to have harmed children;
 - 4) That there will be clear expectations on staff with regard to their personal conduct in direct relations with children under 18 and guidance on what is appropriate in dealing with specific situations which may arise;
 - 5) There are systems in place and staff are aware of them for dealing with possible abuse or violence to children from other users of the licensed facility;

- 6) There are clear and accessible complaint systems for children to report if they have been harmed and there are clear whistle-blowing procedures for staff who may have concerns about the welfare of children on the premises;
 - 7) That all duty managers or staff in charge of the premises are aware of how to refer any concerns about the welfare of children to the local Police, Education Authority or Social Services as necessary.
186. Where a theatrical entertainment is specially presented for children, the Council advises the presence of sufficient adult staff to control access and egress of children and to protect them from harm as follows:
- 1) An adult member of staff to be stationed in the vicinity of each of the exits from any level, subject to there being a minimum of one member of staff per 50 children or part thereof;
 - 2) No child (unless accompanied by an adult) to be permitted in the front row of any balcony;
 - 3) No standing to be permitted in any part of the auditorium during the performance.

Child Sexual Exploitation (CSE)

187. Sexual exploitation is when a child under the age of 18 is manipulated into having sex or engaging in sexual activities, usually in return for something. It is a form of abuse and a crime.
188. This Authority and its partners are committed to tackling and preventing the sexual exploitation of children and young people.

London Safeguarding Children's Board

189. The London Safeguarding Children's Board provide advice and guidance for licensed premises operators and their staff in their policy 'Safeguarding Children Policy for Licensed Premises', which can be viewed using the link provided https://www.londoncp.co.uk/sg_licensed.html#. All operators are advised to display a copy of the procedure and accompanying poster available upon the premises.
190. The London Safeguarding Children's Board provide advice and guidance for licensed premises operators and their staff in their policy 'Safeguarding Children Policy for Licensed Premises', which can be viewed using the link provided [London Safeguarding Children Procedures](#) All operators are advised to display a copy of the procedure and accompanying poster available upon the premises.
191. Operators writing the policies and procedures for their premises staff may also include appropriate measures/training covering how staff would deal with unsupervised very young children being on the premises, or children causing perceived problems on/around the premises.

Child sexual exploitation and communities

192. It's better to prevent children from being harmed than to have to help children recover from the trauma of being sexually exploited. The Council and Southwark Police are carrying out widespread community education to ensure everyone knows what to do to prevent harm to children, and we're sure that you, too, have a big role to play. For more information, please visit our website at [Child sexual exploitation \(CSE\) | Southwark Council](#)

Southwark Safeguarding Children's Board

193. Southwark Council, local Police, health services, local schools, community and faith groups and the voluntary sector all come together to keep children safe at the Southwark Safeguarding Children's Board. [Southwark Safeguarding Partnership -](#)
194. The Safeguarding Board wants to reach parents, children and young people, and all local organisation's with information about stopping child sexual exploitation. There are 9 different "types" of child sexual exploitation. Sexual exploitation often happens alongside other forms of child exploitation, such as forcing children to break the law by carrying drugs or weapons and using that to blackmail a child. It's easy to understand the danger to children when their "best friend" is a criminal. There's a role for everyone to play to put a stop to this, and we'll support you in playing your role.

Entertainment involving striptease and nudity

195. Applicants proposing activity that includes adult entertainment are also referred to Southwark's policy in relation to the Local Government (Miscellaneous Provisions) Act 1982 (the 1982 Act) and as amended, and Appendix C of this policy.

Chapter 9 – ENFORCEMENT

Enforcement

196. It is essential that licensed premises operate in accordance with the Act and comply in full with the licence terms, conditions and restrictions at all times.
197. Part of the Licensing Authority's role is to monitor premises operations and take appropriate enforcement action to promote the licensing objectives, support good management practice, and protect the local community. This Authority recognises the importance of the enforcement role and will work in partnership with all relevant agencies to promote the licensing objectives, taking effective enforcement actions where appropriate. The Licensing Act 2003 outlines a number of offences related to the sale and consumption of alcohol, as well as the operation of licensed premises. Please refer to <https://www.legislation.gov.uk/ukpga/2003/17/part/7>
198. Southwark Council's Regulatory Enforcement policy sets out the approach to enforcement across the service. This can be found at: https://www.google.com/search?q=southwark+Regulatory+Services+Enforcement+Policy+2021&rlz=1C1GCEB_enGB1159GB1160&oq=southwark+Regulatory+Services+Enforcement+Policy+2021+&gs_lcrp=EgZjaHJvbWUyBggAEEUYOTIGCAEQRRg80gEJOTM1NWowajE1qAIIsAIB8QU_N5hTSGUZEa&sourceid=chrome&ie=UTF-8
199. All proactive premises inspections will be undertaken on a thorough risk-based assessment, with resources targeted toward a problem or high-risk premises which require greater attention. A lighter touch will be applied in respect of premises, which can show they are well run and present a low risk. Details of the basis for our risk-assessment approach can be obtained from the licensing service.
200. Intelligence-led enforcement activities will be carried out when. Public complaints, referrals from the local community teams, reports from Officers and other partner agencies.
201. To promote effective use of enforcement resources and reduce the burden on business, those enforcement agencies inspecting and investigating particular matters may note other matters normally dealt with by another relevant agencies during the course of premises visits.
202. To ensure public safety, these matters identified will be brought to the attention of the licence holder and then reported to the issue to appropriate agency. (When a Licensing Officer notes a fire safety matter, it will be referred to the fire service.)

Partnership Working

203. This partnership approach is supported and facilitated by:
 - 1) Partnership Night Time Economy Team (NTE);
 - 2) Regular liaison meetings between the licensing service and the Police Licensing Teams;
 - 3) Regular meetings of the primary Responsible Authorities;
 - 4) The partnership tasking group; and
 - 5) A commitment to multi-agency working.
204. The partnership NTE (council and/or relevant agencies) intends to provide a high-visibility, reassuring presence in the night-time economy and to establish good working relationships

with venue front-of-house and management staff. Random visits will be made to premises in furtherance of these aims.

205. Covert test purchases of all age-restricted products, including alcohol. Challenge 25 compliance. Sale of contraband / smuggled goods products including alcohol. Challenge 25 compliance. Sale of contraband / smuggled goods.
206. The results of investigations and test purchasing will be communicated to the business operator, either at the time or in writing, after the event.
207. This Authority recognises the important role played in preventing crime and disorder by the personnel the Security Industry Authority regulates. In partnership with the SIA Border Force Policy, we will ensure door supervisors are properly licensed. As part of this co-operation, it has authorised Officers to act under the powers of the Private Security Industry Act 2001.
208. This Authority recognises pub and club watch schemes and is willing to support business-led initiatives intended to help promote the licensing objectives.

APPENDIX A – CONTACT DETAILS

Southwark Licensing Team

Regulatory Services

3rd Floor Hub 1

PO Box 64529

London SE1P 5LX

E-mail: licensing@southwark.gov.uk

By phone: Customer Service centre on 020 7525 2000

By e-mail: licensing@southwark.gov.uk

By visiting the website: <https://www.southwark.gov.uk/business/licences>

Responsible Authorities

Licensing Authority

Southwark Council

3rd Floor Hub 1

PO Box 64529

London SE1P 5LX

E-mail: licensing@southwark.gov.uk

Health and Safety

Southwark Council, Floor 3, Hub 1,

PO Box 64529

London SE1P 5LX

E-mail: ohs.regen@southwark.gov.uk

***Please note** – this address is for premises that come under the Council for health and safety enforcement. Other premises, such as Council-owned premises, will come under the HSE and boats under the Maritime and Coastguard Agency.*

Planning Authority

The Council's Building and Development Control

Services Council Offices

5th Floor Hub 2

PO Box 64529

London SE1P 5LX

E-mail: planning.enquiries@southwark.gov.uk

Trading Standards

Southwark Council

Floor 3, Hub 1

PO Box 64529

London SE1P 5LX

E-mail:

TradingStandards.Regen@southwark.gov.uk

Environmental Protection Team (EHS)

Southwark Council

Floor 3, Hub 1

PO Box 64529

London SE1P 5LX

E-mail:

Environmental.Protection@southwark.gov.uk

The Chief Officer of Police

Southwark Police Licensing Unit

323 Borough High Street

London, SE1 2ER

E-mail: SouthwarkLicensing@met.police.uk

Tel: 0207 232 6756

Home Office Alcohol Licensing Team

Lunar House
40 Wellesley Road
Croydon
CR9 2BY
E-mail: Alcohol@homeoffice.gsi.gov.uk

The London Fire and Emergency Planning Authority

South East Area 3
London Fire Brigade
169 Union Street
London, SE1 0LL
E-mail: FireSafetyRegulationSE@london-fire.gov.uk
Telephone number: 020 8555 1200 Ext: 36500

The Local Safeguarding Children Board

Southwark Social Services
PO Box 64529
London SE1P 5LX
E-mail: qau.safeguarding@southwark.gov.uk
Tel: 020 7525 4646

Port of London Authority

(for vessels only)
London River House
Royal Pier Road
Gravesend,
Kent
DA12 2BG

***Note:** If you are applying for a premises or a club premises certificate and part of the premises concerned falls within another Licensing Authority's area, then that Authority should be copied in on the application also.*

Public Health

Southwark Council
1st Floor Hub 2
PO. Box 64529,
London SE1P 5LX
Email: publichealth.licensing@southwark.gov.uk
Tel. 020 7529 0026

Others

Southwark Disablement Association

Cambridge House
1 Addington Square
Camberwell
London, SE5 7JZ
Email: sda@sdaill.org
Tel: 020 7358 7740

Markets and Street Trading

SAST House
47-53 Dawes Street London
SE17 1EL
Email: streettrading@southwark.gov.uk
Tel: 020 7525 6000

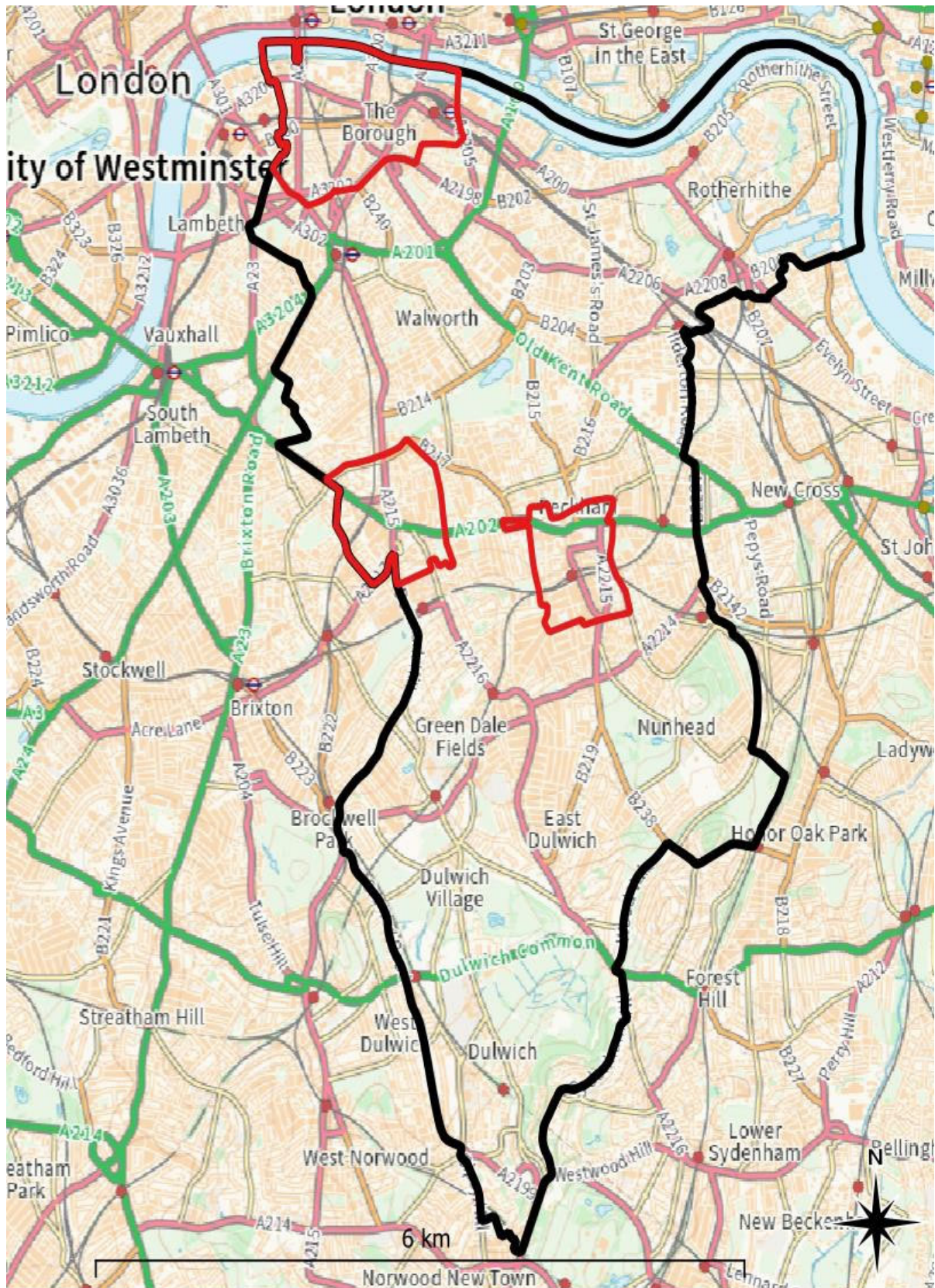
Tables & Chairs/Street Furniture/Pavement Licensing

(or other temporary articles on the highway)
Highways Licensing Team
Southwark Council, Floor 3 Hub 1
PO BOX 64529,
London, SE1 5LX
Email Highwayslicensing@southwark.gov.uk

Culture and Events Team (for Safety Advisory Board)

Southwark Council, 3rd Floor - Hub C
PO Box 64529
London SE1P 5LX
Email: events@southwark.gov.uk
Tel: 020 75253422

APPENDIX B – MAP OF AREA CLASSIFICATIONS AND CIAs



Cumulative Impact

1. Chapter 14 of the Home Office Revised Guidance issued under s.182 of the Licensing Act 2003 (November 2025) sets out that relevant information which Licensing Authorities may be able to draw upon to evidence the cumulative impact of licensed premises on the promotion of the licensing objectives will include:
 - Local crime and disorder statistics, including statistics on specific types of crime and crime hotspots;
 - Statistics on local anti-social behaviour offences;
 - Health-related statistics such as alcohol related emergency attendances and hospital admissions;
 - Environmental Health complaints, particularly in relation to noise and litter;
 - Complaints recorded by the Local Authority, which may include complaints raised by local residents or residents' associations;
 - Evidence from local and parish Councillors; and
 - Evidence obtained through local consultation.
2. The Licensing Authority may consider this evidence, alongside its own evidence as to the impact of licensable activities within its area and consider, in particular, the times at which licensable activities are carried on. Information which may inform consideration of these issues includes:
 - Trends in licence applications, particularly trends in applications by types of premises and terminal hours;
 - Changes in terminal hours of premises;
 - Premises capacities at different times of night and the expected concentrations of drinkers who will be expected to be leaving at different times.
3. In summary, the steps to be followed in considering whether to adopt a special policy within the policy are:
 - a) Identify concern about crime and disorder; public safety; public nuisance; or protection of children from harm;
 - b) Consider whether there is good evidence that crime and disorder or nuisance are occurring, or whether there are activities which pose a threat to public safety or the protection of children from harm;
 - c) If such problems are occurring, identify whether these problems are being caused by customers of licensed premises, or that the risk of cumulative impact is imminent.
 - d) Identify the boundaries of the area where problems are occurring (this can involve mapping where the problems occur and identifying specific streets or localities where such problems arise);
 - e) Consult those specified in section 5(3) of the 2003 Act and, subject to the outcome of the consultation, include and publish details of the special policy in the licensing policy statement.
4. The effect of publishing a cumulative impact assessment is to create a rebuttable presumption that applications for new premises licences or club premises certificates or variations that are likely to add to the existing cumulative impact will normally be refused or subject to certain

limitations, following relevant representations. In such circumstances, it is for the Applicant to demonstrate that the application will not, if granted, further contribute to the negative local cumulative impact on any one or more of the licensing objectives.

5. This presumption does not relieve the Responsible Authorities or interested parties of the need to make a relevant representation. Such representation, which should reference the information which had been before the Licensing Authority when it developed its statement of policy, must be received before a Licensing Authority may lawfully consider giving effect to its special policy. If there are no representations, the Licensing Authority must grant the application in terms that are consistent with the operating schedule submitted. Once adopted, any policy will be reviewed within a three year period.
6. The Council will not use such policies solely:
 - As the grounds for removing a licence when representations are received about problems with existing licensed premises;
 - To refuse modifications to a licence, except when the modifications are directly relevant to the policy, for example where the application is for a significant increase in the capacity limits.

Southwark regeneration and planning policies

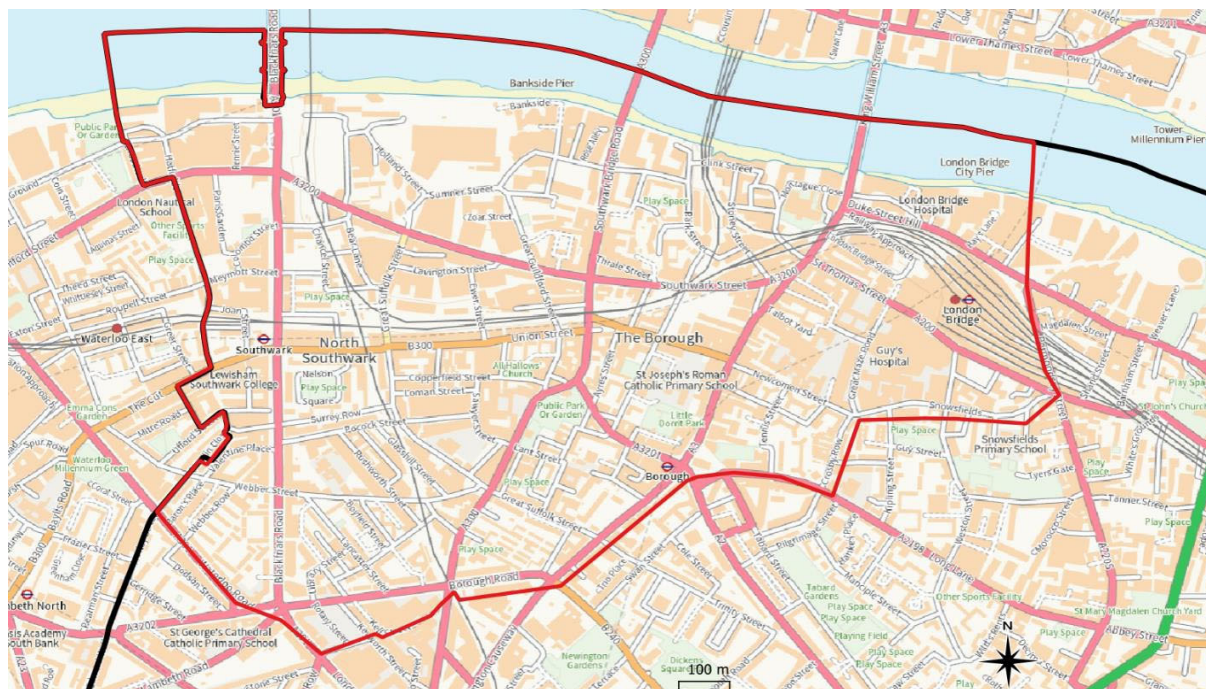
7. Local cumulative impact policies are not intended as a barrier to local regeneration; however regeneration and planning policies and schemes are separate regimes from licensing and each deals with different and separate local issues.
8. Applicants for premises licence and variations in regeneration areas and who have received assistance from the regeneration section of the Council with their planning consents, that receive relevant representations with regards to cumulative impact policies will still be required to adequately address the cumulative crime and disorder and public nuisance issues raised in this policy in order to successfully rebut the presumption against grant. This rebuttal can include evidence that the nature of the area has changed as a result of ongoing regeneration in the area. Applicants will still be expected to address the four licensing objectives within their operating schedule.

Southwark Cumulative Impact Areas (CIAs)

9. Since the introduction of the Licensing Act 2003, the Council's Licensing Committee has monitored the impact of licensed premises operation across the local Southwark area. Central to this monitoring lies the annual (Local Authority / Police) Partnership Analysis of Alcohol Related Harm.
10. The Southwark analysis has developed and improved over the years as information sources have been identified and developed. The analysis now incorporates a statistical analysis of:
 - Alcohol related violence;
 - Alcohol related disorder and rowdiness;
 - Alcohol related health harm;
 - The costs of alcohol related harm.
11. This information is supplemented by periodic reports provided the Council's Environmental Protection Team on noise nuisance complaints and other service and received information.

12. With around 1600 licensed premises operating within the Borough, parts of Southwark have now reached saturation point. Where this occurs, the economic benefits of providing alcohol outlets during the day and/or the night time economy begin to be outweighed by increased public nuisance and crime and disorder, loss of amenity and the costs of excessive alcohol consumption.
13. This Authority currently has three cumulative impact policies in place. In each case, the decision to introduce a local policy has been taken, having had regard to the latest analysis and following the process set out in Chapter 6 of this policy. The current CIAs are in:
 - Borough and Bankside;
 - Camberwell;
 - Peckham.
14. The boundaries of each local CIA are detailed below. A copy of the latest partnership analysis of alcohol-related harm and noise nuisance complaints is also available upon written request from the Licensing Service (see Appendix A for contact details). The effects of each policy will continue to be monitored and reported to the Licensing Committee periodically. A policy will be removed when no longer needed.
15. The Authority also has three monitoring areas, where consideration may be given to introducing additional CIAs if the crime data analysis supports their implementation in the future. These monitoring areas are:
 - Elephant and Castle;
 - Old Kent Road;
 - Walworth and East Street.

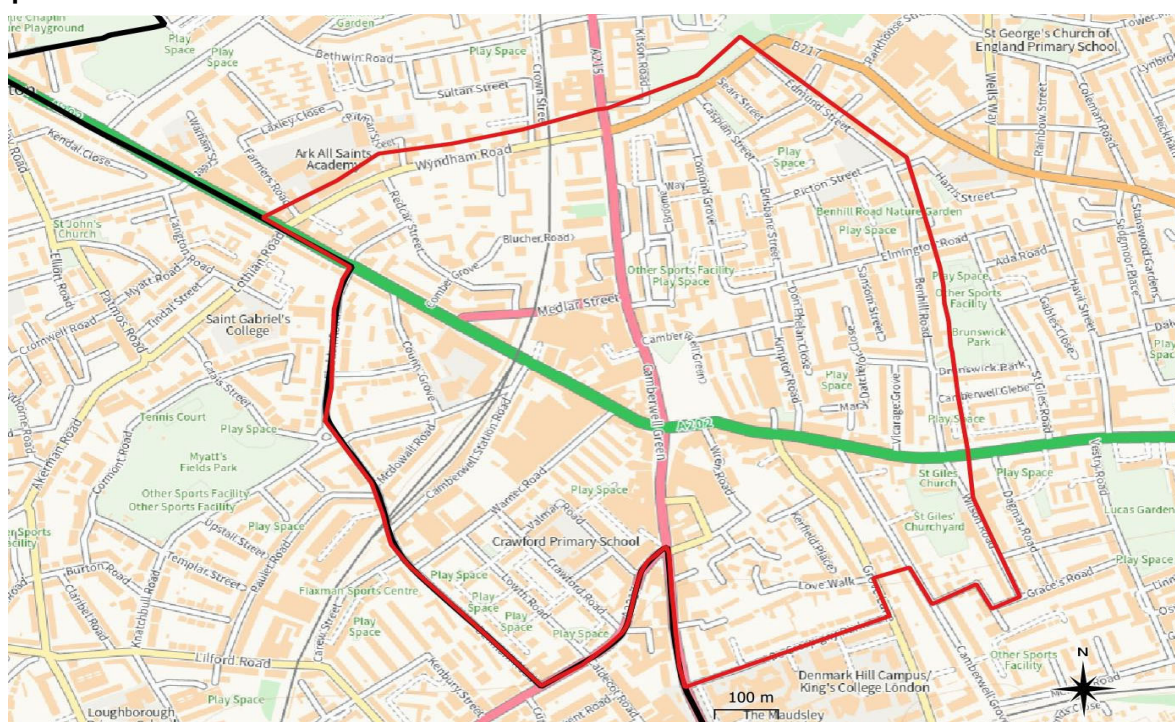
Map of Borough and Bankside CIA



Borough and Bankside CIA

16. On 4 November 2009, the Council Assembly agreed that it was appropriate and necessary to introduce a local policy dealing with the cumulative impact of licensed premises in the Borough and Bankside area. The boundary of the area was extended on 6 April 2011.
17. The boundary of the area to which the policy applies is defined as follows – Commencing at the Lambeth border on the Thames and moving southward to Waterloo Road then St George's Circus / Borough Road / Borough High Street / Long Lane / Crosby Row / Snowsfields / Bermondsey Street directly north to the river frontage and then westward back to the Lambeth border.
18. The classes of premises within the area to which the policy shall apply will be nightclubs / public houses and bars/restaurants and cafes / off-licences, supermarkets and grocers.

Map of Camberwell CIA

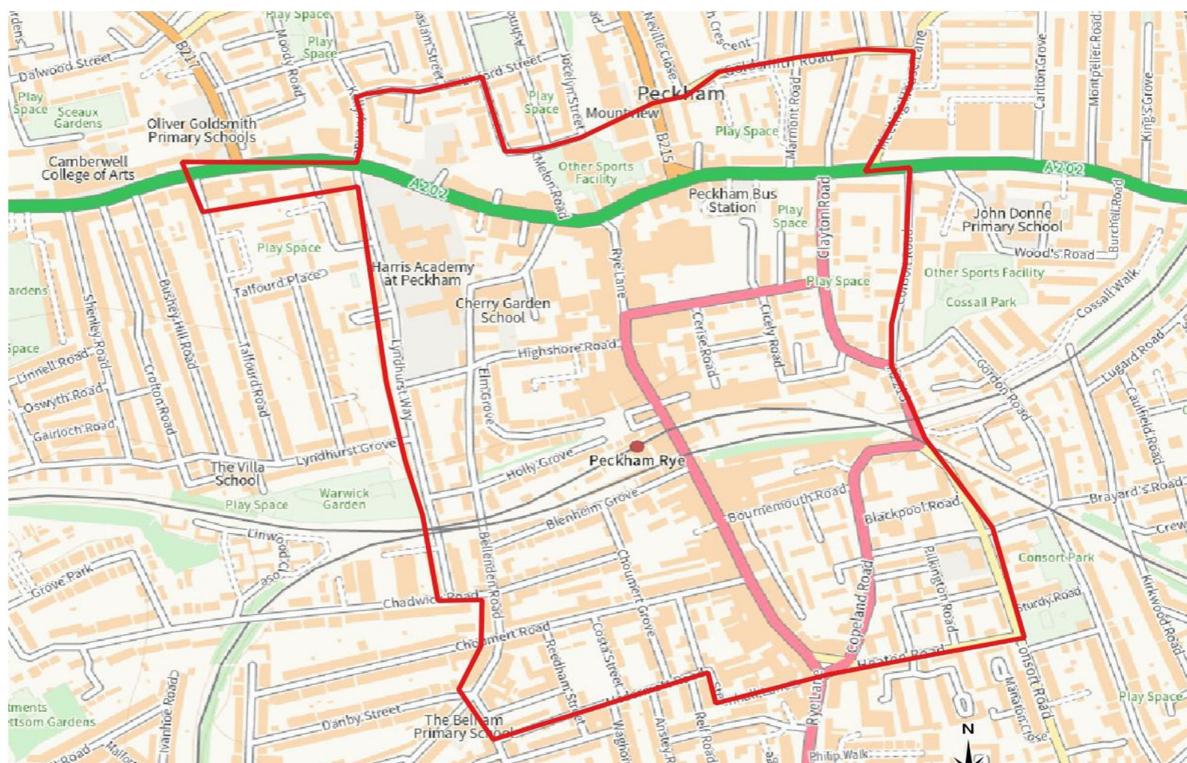


Camberwell CIA

19. On 5 November 2008, Council Assembly agreed that it was appropriate and necessary to introduce a local policy dealing with the cumulative impact of licensed premises in the Camberwell area.
20. The boundary of the area is defined as follows – From Camberwell New Road at the junction with Wyndham Road progressing via Camberwell Road / Bowyer Place / Edmund Street / Benhill Road / Wilson Road / Graces Road / Graces Mews/ Camberwell Grove (via alley) / Grove Lane / De Crespigny Park / Denmark Hill following the Lambeth boundary to Coldharbour Lane / Denmark Road / Flodden Road and Camberwell New Road returning to the start.

21. The classes of premises to which the policy applies are defined as follows: night clubs; pubs and bars; off-licences, grocers, supermarkets, convenience stores and similar premises.

Map of Peckham CIA



Peckham CIA

22. On 5 November 2008, Council Assembly agreed that it was appropriate and necessary to introduce a local policy dealing with the cumulative impact of licensed premises in the Peckham area. On 4 November 2009 the boundary of the policy area was extended.
23. The boundary of the area is defined as follows: Commencing on Peckham High Street at the junction with Kelly Avenue progressing to Gattonby Street / Sumner Road / Jocelyn Street / cross Peckham Hill Street / Goldsmith Road / Meeting House Lane / Consort Road / Heaton Road / Sternhall Lane / McDermott Road / Maxted Road / Bellenden Road / Chadwick Road / Lyndhurst Way / Peckham Road to junction with Talfourd Road and back to start.
24. The classes of premises to which the policy applies is defined as follows: nightclubs; pubs and bars; off-licences, grocers, supermarkets, convenience stores; and similar premises.

Review of CIAs

25. CIAs must be reviewed every three years to see if supporting crime statistics justify their relevance, or if those monitoring areas now justify a CIA introduction. Analysis is done, comparing any changes over long and short-term periods, looking at crime data from the Metropolitan Police

and the London Ambulance Service over the last seven years. Anti-social behaviour calls to the Police, categorised as rowdy behaviour or street drinking, have also been included. This data analysis is available by contacting the Licensing Service. Reviewing these figures for the CIAs and the monitoring areas, the proportions do not change significantly.

26. At this time, all three CIAs are to remain in place and unchanged. The monitoring areas are to remain in place and unchanged. There is a notable level of crime in the Elephant and Castle area, but it is considered at this time, to be as a result of the location being a major transport exchange hub, with those responsible for alcohol- related crime passing through the area, rather than as a result of local alcohol-led premises. As this area is undergoing significant regeneration, with many additional future alcohol-licensed venues planned, this will be reassessed in the future.
27. All Applicants for new premises licences or for variation of existing premises licences, made in respect of classes of premises affected by the policy, located within a special policy area, must address the local concerns raised within their application and operating schedule.
28. The licensing service, acting in its role as Responsible Authority, will review each application in the light of the special policies and will make representations where the application is likely to add to the existing impact
29. Where a presumption against the grant of a licence exists and a relevant representation has been received, this Authority must consider whether it would be justified in departing from its special policy in the individual circumstances of the case. This Authority will need to be satisfied that the grant of the application under consideration will not further impact on the relevant licensing objectives, before any grant or part grant of the application can be approved.

APPENDIX C - OTHER RELATED LEGISLATION AND STRATEGIES

Vulnerability and Vulnerable Persons

1. We expect all licensed premises to have appropriately trained staff who are proactive and vigilant around the safety of vulnerable people in the night time economy. This includes a duty to capture information and report to the police where appropriate.

Women's Safety Charter

2. This Authority is deeply concerned by the ongoing issue of female sexual harassment in bars, nightclubs, and other licensed venues, particularly the normalisation of such behaviour, which often goes unchallenged or unreported.
3. In line with the Women's Night Safety Charter, which aims to address these concerns, this Authority encourages any organisation's that operate at night to take proactive steps in creating a safer environment for women. The Charter, which is part of the Mayor's Tackling Violence Against Women and Girls Strategy, sets out clear actions for venue management to ensure women's safety. The key pledges include:
 - Appoint a champion within your organisation who actively advocates for women's night safety.
 - Showcase your commitment to women's safety at night to staff and customers, such as through a communications campaign.
 - Reassure customers and staff that London is safe, while providing guidance on what to do if they experience harassment while working, socialising, or travelling.
 - Promote reporting by both victims and bystanders as part of your communications campaign.
 - Train staff to ensure that all women who report incidents are taken seriously.
 - Ensure staff are trained to properly record and respond to all reports.
 - Design public spaces and workplaces with the aim of enhancing safety for women at night.
4. Many responsible and forward-thinking venues have already committed to these principles. The Authority strongly encourages all licensed premises to sign up to the Women's Night Safety Charter as a step toward ensuring that their venues remain safe spaces for everyone, free from harassment.
5. This Authority strongly recommends that every licensed operator demonstrates their commitment to ensuring that their premises also provide a safe environment for women by doing the same. We also recommend licence holders put in place measures to reduce gender-based violence, intimidation and harassment for all staff and customers. This may include 'Ask for Angela', WAVE and specific training for staff. Further details are available at the following links:
 - Ask for Angela: <https://askforangela.co.uk/>
 - Ask for Clive: <https://askforclive.com/>
 - VAGW: <https://www.met.police.uk/police-forces/metropolitan-police/areas/about-us/about-the-met/vawg-action-plan-summary/overview-action-plan/>
 - WAVE: <https://www.saferbusiness-training.org.uk/wave>

- Victim Support: <https://www.victimsupport.org.uk/>
 - TFL Safer Travel in London: <https://tfl.gov.uk/campaign/safer-travel>
6. Further information can be accessed through the Council's website, [Sign up to the Women's Night Safety Charter | Southwark Council](#) or by contacting the Licensing Team.

Safe Havens

7. Safe Havens are a way for you to get support from local businesses or places if you need help.
8. People can go to them if they feel scared or threatened. They are mainly aimed at women and girls to access support if they feel harassed, vulnerable or in need of help, but anyone can use a Safe Haven. It could be a café, library, shop or other local, welcoming place. These spaces offer people a free, confidential, safe place when they need it.
9. They can offer water, electricity, wi-fi or a phone. It can also be a way for people to contact family/friends or be signposted to transport or support services. Safe Havens can also make phone calls to emergency services on people's behalf. More information can be found at <https://www.saferbusiness.org.uk/safe-havens>
10. Look out for locations with a Safe Haven sticker in their window.



Other relevant legislative requirements

11. The Council has other general statutory requirements relating to crime and disorder, anti-social behaviour, health, nuisance, human rights, disability discrimination and race relations. These are briefly outlined below.

Modern Day Slavery

The Modern Slavery Act 2015 is a UK law focused on combating modern slavery and human trafficking. It consolidates existing offences and introduces new measures to protect victims, punish offenders, and increase transparency in supply chains.

<https://www.legislation.gov.uk/ukpga/2015/30/contents>

Terrorism (Protection of Premises) Act 2025 (Martyn's Law)

The Terrorism (Protection of Premises) Act 2025 (the Act) seeks to create a safer environment by ensuring that those responsible for public spaces and events.

'The Act' mandates that those responsible for certain premises and events must be identified before an event, and they must consider and implement measures to mitigate the risk of terrorist attacks and improve their ability to respond to such events.

Whilst 'The Act' received Royal Assent on 3 April 2025 and it is expected that the implementation period will be at least 24 months.

You must bear in mind the background to the legislation. Circumstances may influence an earlier commencement date, and operators must consider that the lead-in time and resource booking for large events (events over 800 persons) is normally around 15 months.

The Anti-Social Behaviour Crime and Policing Act 2014

The Anti-Social Behaviour, Crime and Policing Act 2014 defines 'anti-social behaviour' as "conduct that has caused, or is likely to cause, harassment, alarm or distress to any person"; "conduct capable of causing nuisance or annoyance to a person in relation to that person's occupation of

residential premises”; or “conduct capable of causing housing-related nuisance or annoyance to a person”.

The Act contains a range of powers intended to support Local Authorities and partner bodies in dealing with anti-social behaviour. These include powers of premises closure in cases of nuisance or disorder, which may support primary legislation.

Clean Neighbourhoods and Environment Act 2005

This provides Local Authorities with additional powers to tackle poor environmental quality and anti-social behaviour. In particular, the Act includes sections on nuisance and abandoned vehicles, litter, graffiti, waste, noise and dogs. The Act gives Local Authorities powers to issue fixed penalty notices to any licensed premises emitting noise that exceeds the permitted level between the hours of 23:00 and 07:00.

Crime and Disorder Act 1998

Section 17 of the Crime and Disorder Act 1998 is aimed at giving the vital work of crime and disorder reduction a focus across the wide range of local services and putting it at the heart of local decision-making. It places a duty on key Authorities, including Local Authorities and the Police and Fire and Rescue Authorities, to do all they reasonably can to prevent crime and disorder in their area.

All Local Authorities must fulfil their obligation under section 17 of the Act when carrying out their functions as Licensing Authorities under the 2003 Act. The Council as Licensing Authority must consider how the exercise of its functions impacts upon and contributes toward the prevention of crime and disorder within its area.

This statement of licensing principles is intended to support the work of the local Crime and Disorder Reduction Partnership, the Safer Southwark Partnership through measures under both the Crime and Disorder Reduction Strategy, the Violent Crime Reduction Strategy and the Alcohol Strategy.

The Environmental Protection Act 1990

The Act provides the fundamental structure and authority for waste management and control of emissions into the environment. The management of statutory nuisance is set out in Part III of the Act. The Act places a duty on a Local Authority to investigate complaints of statutory nuisance from people living within its area

Equality Act 2010

The Equality Act 2010 legally protects people from discrimination in the workplace and in wider society. It replaced previous anti-discrimination laws with a single Act, making the law easier to understand and strengthening protection in some situations.

The Act also imposes a public sector equality duty. This means that public bodies, including this Licensing Authority, must consider all individuals when carrying out their day-to-day work, in shaping policy, in delivering services, and in relation to their own employees.

It also requires that public bodies

- Have due regard to the need to eliminate discrimination
- Advance equality of opportunity
- Foster good relations between different people when carrying out their activities

This Authority recognises Southwark’s diversity as one of its strengths and is committed to creating a more inclusive community. Our aim is to ensure that nothing within this Statement of Licensing Policy discriminates against any group within the community and will pursue any opportunity to

promote equality of opportunity and good community relations. To this end, the Authority will undertake equalities impact assessments of the policy at regular intervals to identify the effects the policy may have had for different groups and take appropriate action to prevent direct and indirect discrimination which may have been the result of the policy statement.

We also recognise that other service providers providing licensable activities including shops, hotels, pubs, theatres and more hold similar responsibilities. Service providers have an obligation to make reasonable adjustments to premises or to the way they provide a service.

While access for people with disabilities is not one of the four licensing objectives, this Council expects that responsible licensees will comply with the requirements of the Equality Act 2010. The Southwark Disablement Association can provide advice to any Licensee on reasonable adjustments – contact details are provided in Appendix A.

Alternatively, see the government's planning and access for disabled people good practice guide <https://assets.publishing.service.gov.uk/media/5a78adbce5274a2acd188f2b/156681.pdf>

Public Sector Equality Duty

- (1) A Public Authority must, in the exercise of its functions, have due regard to the need to—
 - (a) eliminate discrimination, harassment, victimisation and any other conduct that is prohibited by or under this Act;
 - (b) advance equality of opportunity between persons who share a relevant protected characteristic and persons who do not share it;
 - (c) foster good relations between persons who share a relevant protected characteristic and persons who do not share it.
- (2) A person who is not a Public Authority but who exercises public functions must, in the exercise of those functions, have due regard to the matters mentioned in subsection (1).
- (3) Having due regard to the need to advance equality of opportunity between persons who share a relevant protected characteristic and persons who do not share it involves having due regard, in particular, to the need to—
 - (a) remove or minimise disadvantages suffered by persons who share a relevant protected characteristic that are connected to that characteristic;
 - (b) take steps to meet the needs of persons who share a relevant protected characteristic that are different from the needs of persons who do not share it;
 - (c) encourage persons who share a relevant protected characteristic to participate in public life or in any other activity in which participation by such persons is disproportionately low.
- (4) The steps involved in meeting the needs of disabled persons that are different from the needs of persons who are not disabled include, in particular, steps to take account of disabled persons' disabilities.
- (5) Having due regard to the need to foster good relations between persons who share a relevant protected characteristic and persons who do not share it involves having due regard, in particular, to the need to—
 - (a) tackle prejudice, and
 - (b) promote understanding.
- (6) Compliance with the duties in this section may involve treating some persons more favourably than others, but that is not to be taken as permitting conduct that would otherwise be prohibited by or under this Act.
- (7) The relevant protected characteristics are—
 - age;
 - disability;
 - gender reassignment;

- pregnancy and maternity;
- race;
- religion or belief;
- sex;
- sexual orientation.
- sex;
- sexual orientation.

The Gambling Act 2005

An Act designed to control all forms of gaming and betting. Under this legislation, local Licensing Authorities are made responsible for licensing gambling venues and are provided with a range of enforcement powers.

Local Government (Miscellaneous Provisions) Act 1982 (the 1982 Act) and as amended ☐

Schedule 3 of the Act sets the standards that must be met to ensure the health and safety of all employees and others who may be affected by any work activity.

The legislation was amended to provide legislative control on a sexual entertainment venue. A premises where movement and dance are provided by performers, some of whom are nude. This must be before a live audience for the financial gain of the organiser or entertainer, unless an exemption applies. A Premises Licence under the 2003 Act will still be required.

The Health Act 2006

The Health Act 2006 introduced the ban on smoking in all enclosed workplaces and public spaces, including smoking in pubs, restaurants and members' clubs where bar or other staff are employed. The law is enforced by Local Authorities.

The Health and Safety at Work Act 1974 and the Management of Health and Safety at Work Regulations 1999

The Health and Safety at Work Regulations 1999 states that:

“(1) The Health and Safety at Work Regulations 1999 state that:

“(1) every employer shall make a suitable and sufficient assessment of

- (a) The risks to the health and safety of his employees to which they are exposed whilst they are at work; and
- (b) The risks to the health and safety of persons not in his employment arising out of or in connection with the conduct by him of his undertaking, for the purpose of identifying the measures he needs to take to comply with the requirements and prohibitions imposed upon him by or under the relevant statutory provisions.

(2) Every self-employed person shall make a suitable and sufficient assessment of -

- (a) The risks to his own health and safety to which he is exposed whilst he is at work; and
- (b) The risks to the health and safety of persons not in his employment arising out of or in connection with the conduct by him of his undertaking,”

The Health and Safety Executive helpfully provides a range of example risk assessments which may be viewed at [HSE: Information about health and safety at work](#). The examples provided include for nightclubs, pubs, village halls, Off-licences and convenience stores.

The Human Rights Act 1998

The Human Rights Act 1998 incorporates the European Convention on Human Rights, making it unlawful for a Local Authority to act in any way that is incompatible with a convention right. The Council will have particular regard to the relevant provisions of the European Convention of Human

Rights –

- Article 1 of the first protocol that every person is entitled to the peaceful enjoyment of his possessions, including for example the possession of a licence;
- Article 6 that in determination of civil rights and obligations everyone is entitled to a fair and public hearing within a reasonable time by an independent and impartial tribunal established by law;
- Article 8 that everyone has the right to respect for his home and private life.

Regulatory Reform (Fire Safety) Order 2005

The Regulatory Fire Safety (Reform) Order 2005 covers general fire safety in England and Wales. In the majority of premises, local Fire and Rescue Authorities enforce this fire safety legislation. Under the Regulatory Reform (Fire Safety) Order 2005 the “responsible person” as defined by the order, must:

- Take such general fire precautions as will ensure, so far as is reasonably practicable, the safety of his or her employees;
- Take such general fire precautions as may be reasonably required in the circumstances of the case to ensure that the premises are safe for the use by other persons;
- Make a suitable and sufficient assessment of fire risks to which relevant persons may be exposed for the purposes of identifying the general fire precautions he or she needs to take;
- The responsible person **MUST** record the information gathered by the risk assessment for all premises covered by the Licensing Act 2003, in particular, the significant findings; the measures taken, or to be taken, to ensure general fire safety; and any person identified as being especially at risk.

This Authority recognises that it may not impose any condition relating to any requirement or prohibition that is or could be imposed under the “Fire Safety Order” and thereby that conditions relating purely to fire safety matters may not be placed on premises licences. Further information and guidance about the Order and fire safety legislation is available from the Communities and Local Government website at www.communities.gov.uk/fire.

Children Act 2004

Section 11 of the Children Act places a duty on a range of organisation’s, agencies and individuals to ensure their functions, and any services that they contract out to others, are discharged having regard to the need to safeguard and promote the welfare of children. This specifically includes local Licensing Authorities. [Children Act 2004](#)

Other strategies and policies

This Authority will look to secure the proper integration of this policy with other Council and government policies, strategies, responsibilities, and guidance documents issued. In this context this policy is informed by the following strategies and policies.

Southwark Enforcement Policy

All enforcement actions taken by the licensing service are governed by the Council’s enforcement policy, which has been drafted with reference to the Principles of Good Regulation as stated in the Legislative and Regulatory Reform Act 2006 and the Regulators Code, as published by the Better Regulation Delivery Office.

Southwark Violence Duty Strategy

This strategy is a legal requirement for local authorities, police, and other public agencies to work together to prevent and reduce serious violence in the borough, which sets out the underlying causes and impacts of violent behaviour and makes recommendations as to how the Council and its partner Authorities can make the best use of our resources at a time when those resources will

significantly reduce.

Guidance Documents

This policy is also mindful of the direction provided under the following guidance documents:

- The Home Office Safer Clubbing Guide was issued to ensure the health and safety of anyone who attends dance events, with a particular emphasis on those who also take controlled drugs.
- The Better Regulation Delivery Office's Code of Practice on Age Restricted Products, which deals with the involvement of children in the enforcement of legislation concerning the sale of age-restricted goods.
- The objectives of the Private Security Industry Authority (SIA) will be taken into account in all issues relating to the provision of door supervision at licensed operations.
- The Office for Health Improvement and Disparities (OHID), which is responsible for guidance on alcohol commissioning.
- Section 182 Guidance issued by the Secretary of State.
- National Licensing Policy Framework (NLPF) - The Licensing Authority has had regard to the NLPF when preparing this Statement of Licensing Policy. While the NLPF is non-statutory, its objectives and guidance inform the Authority's approach to licensing decisions and policy development. The Authority is committed to:
 - Implement a consistent and transparent approach to licensing decisions, tailoring conditions to each establishment based on factual evidence rather than assumptions.
 - Foster economic development, revitalisation, and community engagement while adhering to the four key licensing objectives: preventing crime and disorder, ensuring public safety, minimising public nuisance, and protecting children from harm.
 - Promote innovation and adaptability, including the effective use of Temporary Event Notices (TENs) to support temporary events as suggested by the framework.
 - Base decisions on risk assessment and evidence, steering clear of unnecessary restrictions that may impede investment or cultural growth.
 - Align licensing with local planning and regeneration initiatives to enhance a dynamic and secure hospitality and leisure sector.

Where any inconsistency arises between this framework and the 2003 Act or section 182 Guidance, the latter prevails. Decisions must be necessary and proportionate, non-discriminatory and consistent with the Regulators' Code.

This policy will also be checked for consistency with all current legislation, strategy, policy and guidance on a regular basis.